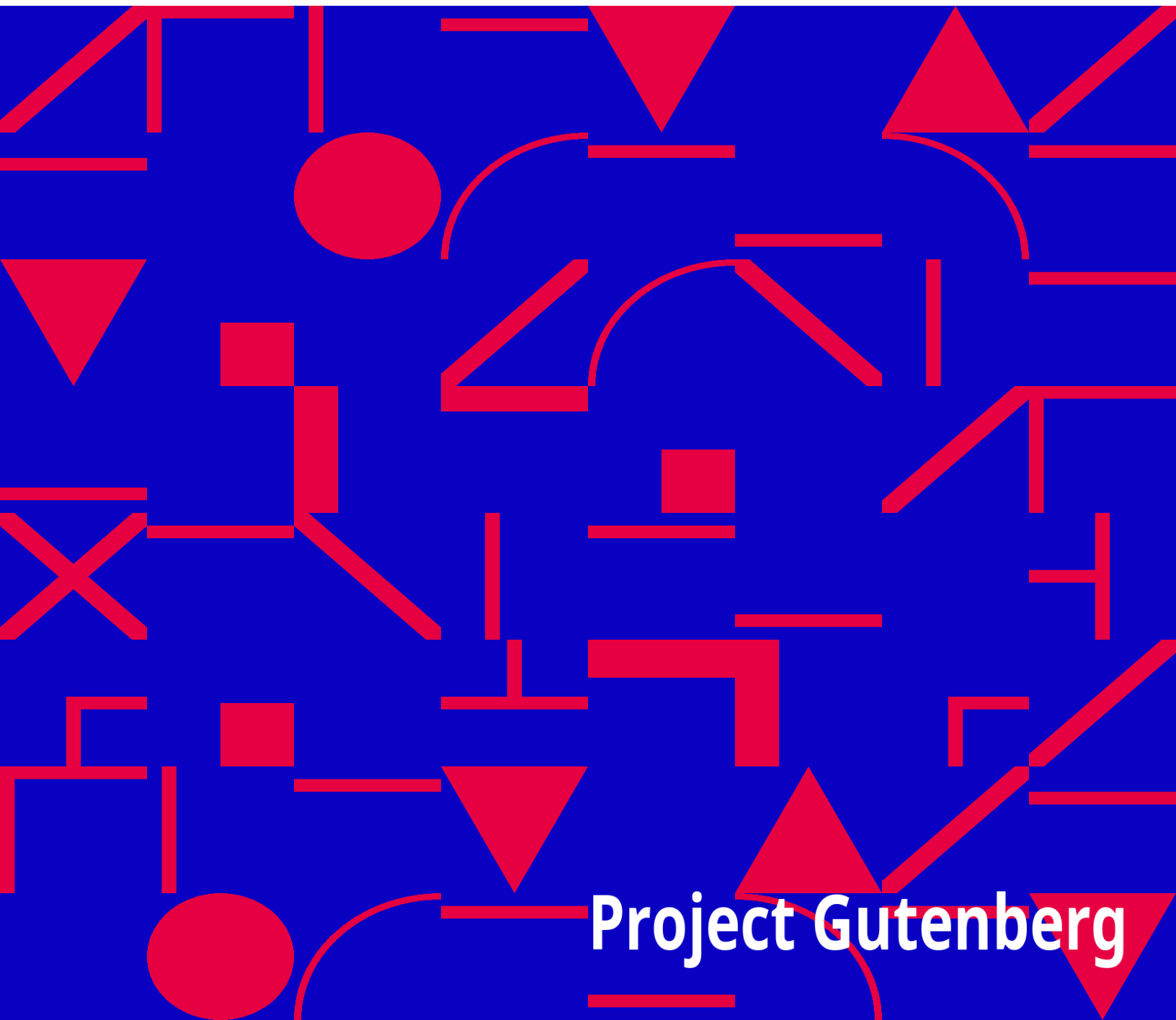


Notes and Queries, Number 57, November 30, 1850

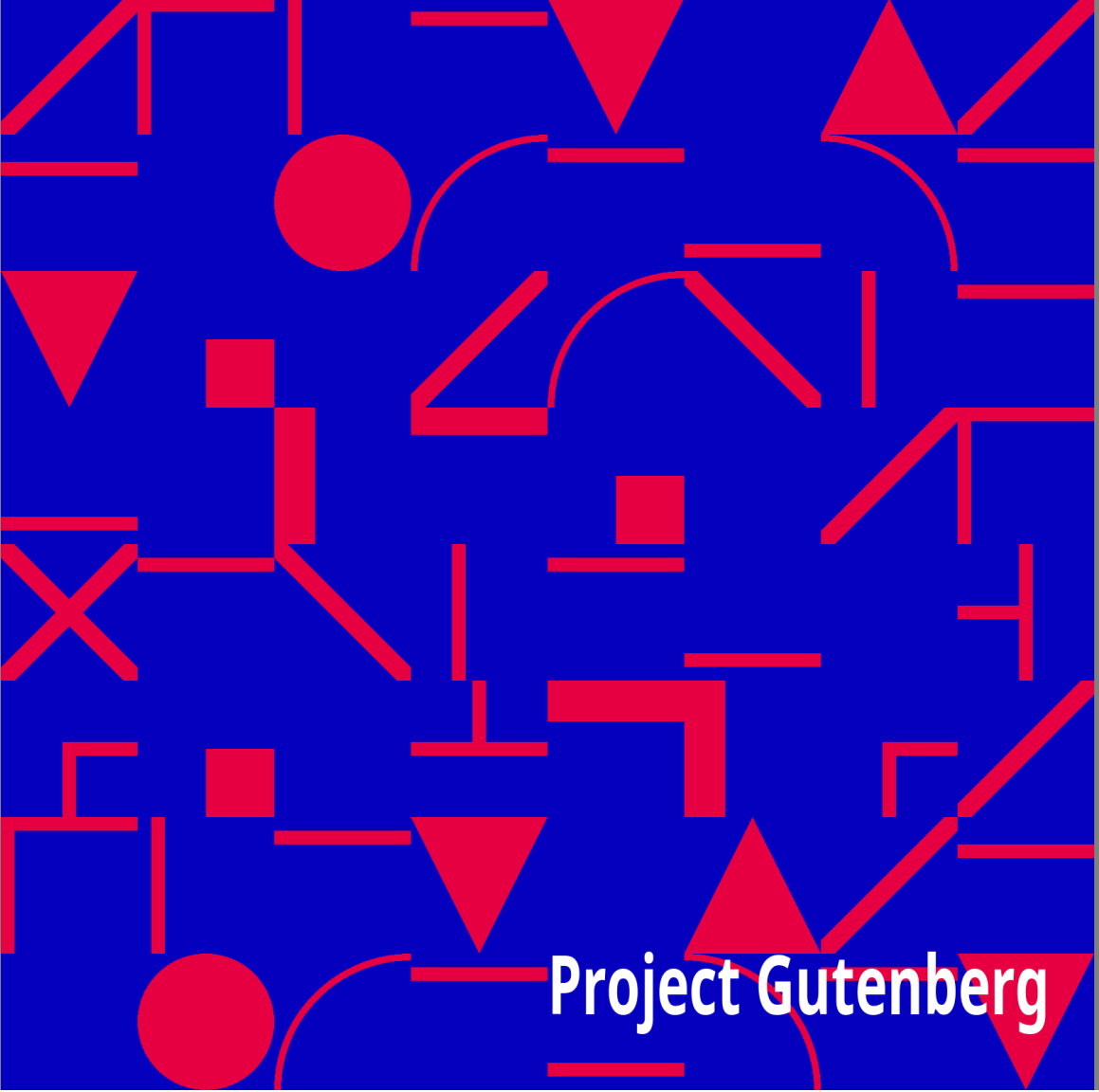
Various



Project Gutenberg

**Notes and Queries, Number 57, November
30, 1850**

Various



Project Gutenberg

The Project Gutenberg eBook of Notes and Queries, Number 57, November 30, 1850

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Notes and Queries, Number 57, November 30, 1850

Author: Various

Release date: March 18, 2005 [eBook #15405]

Most recently updated: December 14, 2020

Language: English

Other information and formats: www.gutenberg.org/ebooks/15405

Credits: Produced by The Internet Library of Early Journals; Jon Ingram, Keith Edkins and the Online Distributed Proofreading Team.

*** START OF THE PROJECT GUTENBERG EBOOK NOTES AND
QUERIES, NUMBER 57, NOVEMBER 30, 1850 ***

NOTES AND QUERIES:

**A MEDIUM OF INTER-COMMUNICATION
FOR LITERARY MEN, ARTISTS,
ANTIQUARIES, GENEALOGISTS, ETC.**

"When found, make a note of."—CAPTAIN CUTTLE.

No. 57.	SATURDAY, NOVEMBER 30. 1850.	Price Threepence. Stamped Edition 4d.
---------	---------------------------------	--

CONTENTS.

NOTES:—

Portrait of Cardinal Beaton	433
On the Pointing of a Passage in "All's Well that Ends Well" by A. Roffe	434
Folk-Lore:—The bigger the Ring, the nearer the Wet —Power of prophesying before Death—Change in the Appearance of the Dead—Strange Remedies—Mice as a Medicine—Omens from Birds	434
Mode of computing Interest	435
On the Cultivation of Geometry in Lancashire	436
Minor Notes.—Sermon's Pills—An Infant Prodigy—A Hint for Publishers—"He who runs may read"—The Rolliad—The Conquest	438

QUERIES:—

Bibliographical Queries	440
Minor Queries.—Dr. Timothy Thruscross—Echo Song—Meaning of Thwaites—Deus Justificatus—Death by Burning—Irish Bull—Farquharson's Observations on Auroræ—Defender of the Faith—Calendar of Sundays in Greek and Roman Churches—Dandridge the Painter—Chaucer's Portrait by Occleve—John o'Groat's House—Dancing the Bride to Bed—Duke and Earl of Albermarle	441

REPLIES:—

Julin, the Drowned City	443
Nicholas Ferrar and the so-called Arminian Nunnery of Little Gidding	444
Vineyards	446
Treatise of Equivocation, by J. Sansom	446
Riots in London	446
Replies to Minor Queries:—Osnaburg Bishoprick—Death of Richard II.—Scottish Prisoners sold to Plantations—Lachrymatories—Querela Cantabrigiensis—"Then" for "than."—Doctrine of the Immaculate Conception—Letters of Horning—Dr. Euseby Cleaver—Mrs.	447

Partington—"Never did Cardinal bring good to England"—Florentine
Edition of the Pandects—Master John Shorne—"Her Brow was
Fair"—Dodd's Church History—Blackwall Docks—Wives of
Ecclesiastics—Stephens' Sermons—Saying of Montaigne—Scala Cœli
—Red Hand

MISCELLANEOUS:—

Notes on Books, Sales Catalogues, &c. [453](#)

Books and Odd Volumes Wanted [453](#)

Notices to Correspondents [454](#)

Advertisements [454](#)

NOTES

PORTRAIT OF CARDINAL BEATON.

A portrait of this eminent Man was engraved by Pennant, from a picture at Holyrood House, in Part II. of his *Tour in Scotland*, p. 243. 4to. Lond. 1776. Lodge has an engraving from the same portrait in his collection of *Illustrious Personages*. This is a strange circumstance; because, when Pinkerton was about to include this portrait in his collection, Pennant wrote to him, on 30th April, 1796, as follows:

"Give me leave to say, that I suspect the authenticity of my Cardinal Beaton. I fear it is Cardinal Falconer or Falconieri. I think there is a genuine one somewhere in Scotland. It will be worth your while to inquire if there be one, and engrave it, and add my suspicions, which induce you do it."—Pinkerton's *Correspondence*, vol. i. p. 402. 8vo. Lond. 1830.

Pinkerton made inquiry, and on Dec. 1st, 1797, writes to the Earl of Buchan:

"Mr. Pennant informs me the Cardinal Beaton is false. It is, indeed, too modern. A real Beaton is said to exist in Fife."—Pinkerton's *Correspondence*, vol. ii. p. 17.

Lord Buchan writes to him that Mr. Beaton, of Balfour, believes himself to have a genuine portrait of the Cardinal, and offers it for engraving. The authenticity of this portrait, however, appears not to have been established, and it was not engraved. Another was found at Yester, and was at first concluded to be a genuine original: but Lady Ancram soon discovered that it possessed no marks of originality, but might be a good copy: it was, however, certainly *not* one of the six cardinals purchased by the third Earl of Lothian. Finally, it was rejected altogether. A copy of a portrait from the Vatican was also rejected as undoubtedly spurious. It appears, therefore, that Pinkerton, in this case at least, exercised caution in the selection of his

subject for engraving, so far as concerned authenticity. His criticism, that the Holyrood House portrait is "too modern," will be agreed in by all who will take the trouble to compare the portrait in Lodge with undoubted portraits of the time: the style is too modern by a hundred years. But the portrait is of a man upwards of sixty years old: Beaton was murdered in 1546, in the fiftieth year of his age. The portrait is of a dark haired man without beard.

I now come to a portrait of Beaton which there appears reason to think is genuine, and I beg the favour of your correspondents to give me any information in their power regarding it. This portrait is in the Roman Catholic College at Blairs, near Aberdeen. It was in the Scotch College at Rome down to the period of the French occupation of that city in 1798, and formed part of the plunder from that college. It was subsequently discovered in a sale-room by the late Abbé Macpherson, rector of the same college, who purchased it and sent it to Blairs, where it has been for, now, a good many years. That it is a portrait of Beaton's time is certain; but the artist is unknown, and the picture has sustained damage. It is attributed, by a competent judge, who has himself painted two careful copies of it, to Titian, not only from its general style and handling, but from certain peculiarities of canvas, &c., on which latter circumstances, however, he does not lay much stress, taking them only as adminicles in proof. The portrait is a half-length, about 2 ft. 6 in. by 2 ft.: it is that of a fresh-coloured, intellectual man, of forty-five or upwards; hazel eyes; hair slightly reddish, or auburn, just becoming tinged with grey; a thin small beard; costume similar to that of Holbein's Cardinal Wolsey, in the hall of Christchurch, Oxford. It bears this inscription, painted at the bottom of the portrait, and over the original finished painting, and therefore of a subsequent date:

"David Betonius, S.R.E., Card. Archiep. S. Andreæ in Scotia, ab Hostibus Fidei Barbare Trucidatus."

Beaton was elected to the Cardinalate in Dec. 1538; did he visit Rome after that? He was at all events in Paris. The Scotch College at Rome was a natural habitat for a portrait of a Scottish churchman so famous as Cardinal Beaton, and it would be strange indeed if they had not one of him where

they affected a collection of portraits of British prelates. I propose to have this portrait engraved, if its probable authenticity cannot be shaken. Did Pinkerton engrave any portrait of Beaton? There is none in my copies of his *Iconographia Scotica*, 1797, and his *Scottish Gallery*, 1799. These contain several duplicates; but it is rare to meet with copies that can be warranted perfect. If the portrait be published, it will probably be accompanied by a short memoir, correcting from authentic documents some of the statements of his biographers: any information either as to the portrait or his life will be thankfully acknowledged. One or two letters from Lord Buchan, on the subject of Scottish Portraits, appeared in the *Gentleman's Magazine*, vol. lxxv., but not relating to this particular one.

SCOTUS.

ON THE POINTING OF A PASSAGE IN "ALL'S WELL THAT ENDS WELL."

Lafeu. "They say miracles are past: and we have our philosophical persons, to make modern and familiar, things, supernatural and causeless."—Act ii. Scene 3.

So the passage is pointed in Johnson and Steevens, that is, with a comma after the word "things;" and the same pointing is used in the recent editions of Mr. Knight, Barry Cornwall, and Mr. Collier.

It occurred to me that this pointing gave a meaning quite out of harmony with what directly follows, and also with the spirit in which Lafeu speaks. Let the comma be placed after "familiar", and the whole passage be read thus:

Lafeu. "They say miracles are past; and we have our philosophical persons to make modern and familiar, things supernatural and causeless. Hence is it, that we make trifles of terrors; ensconcing ourselves into seeming knowledge, when we should submit ourselves to an unknown fear."

Lafeu apparently is speaking somewhat sarcastically of those who say miracles are past, and who endeavour to *explain away* the wonderful into something common and well-known. Subsequently I found that Mr. Coleridge, in his *Literary Remains* (vol. ii. p. 121.), had adduced the above-mentioned passage, placing the comma after "familiar." He does not, however, make any observation on the other pointing; but remarking, that Shakspeare often uses "modern" for "common," proceeds thus:

"Shakspeare, inspired, as it might seem, with all knowledge, here uses the word *causeless* in its strict philosophical sense; cause being truly predicable only of *phenomena*,—that is, things natural, and not of *noumena*, or things supernatural."

It is, perhaps, rather curious, that although Mr. Collier, in his note on Lafeu's speech, has quoted the above from Mr. Coleridge, the improved pointing should have escaped that gentleman's notice.

Looking into Theobald's *Shakspeare*, I find that he also had placed the comma as Mr. Coleridge has. Mr. Theobald adds this note:

"This, as it has hitherto been printed, is directly opposite to our poet's and his speaker's meaning. As I have stopped it, the sense quadrates with the context: and surely it is one unalterable property of philosophy to make seeming strange and preternatural phenomena familiar and reducible to cause and reason."

Does not Mr. Theobald, in his closing remark, turn what in Lafeu is really an ironical outburst on *would-be* philosophers, into something like a serious common-place?

A. ROFFE.

Query, In a work entitled *Philosophy of Shakspeare*, by W.H. Roukin, Lafeu's speech is quoted, and one word changed; "*and* we have our philosophical persons," &c., becomes "*yet* we have," &c. Is there any authority for such a change?

A.R.

FOLK LORE.

The bigger the Ring, the nearer the Wet.—On Sunday evening, the 20th Oct., the moon had a very fine ring round it, which apparently was based near the horizon, and spread over a considerable area of the heavens. This was noticed by myself and others as we returned home from church; and upon my mentioning it to my man-servant, who is a countryman, he said he had been noticing it, and that it reminded him of the old saying, "the bigger the ring, the nearer the wet." On the next day, however, it was fine and windy, and my faith began to be shaken as to the truth of the saying; but the almost incessant rain of the four or five subsequent days fully proved its correctness.

J.A.

Power of prophesying before Death.—To the passages on this subject lately supplied by your correspondents (Vol. ii., pp. 116. 196.) may be added the following from Tertullian, *De Anima*, c. 53. (vol. ii. col. 741., ed. Migne, Paris, 1844):

"Evenit sæpe animam in ipso divortio potentius agitari, sollicitiore obtutu, extraordinariâ loquacitate, dum ex majori suggestu, jam in libero constituta, per superfluum quod adhuc cunctatur in corpore enuntiat quæ videt, quæ audit, quæ incipit nosse."

J.C.R.

Change in the Appearance of the Dead.—A woman near Maidstone, who had had much experience as a sick-nurse, told me some years ago that she had always noticed in corpses a change to a more placid expression on the third day after death; and she supposed this to be connected with our Lord's resurrection. I omitted to ask her whether the belief were wholly the result of her own observation, or whether it had been taught her by others, and were common among her neighbours.

J.C.R.

Strange Remedies.—I find some curious prescriptions in an old book entitled *The Pathway to Health, &c.* (I will not trouble you with the full title), "by Peter Levens, Master of Arts in Oxford, and Student in Physick and Chirurgery."... "Printed for J.W., and are to bee sold by Charles Tym, at the Three Bibles on London Bridge, MDCLXIV." The first is a charm

For all manner of falling evils.—Take the blood of his little finger that is sick, and write these three verses following, and hang it about his neck:

*'Jasper fert Mirrham, Thus Melchior Balthazar Aurum,
Hæc quicum secum portat tria nomina regum,
Soleitur à morbo, Domini pietate, caduca.'*

and it shall help the party so grieved."

"For a man or woman that is in a consumption.—Take a brasse pot, and fill it with water, and set it on the fire, and put a great earthen pot within that pot, and then put in these parcels following:—Take a cock and pull him alive, then flea off his skin, then beat him in pieces; take dates a pound, and slit out the stones, and lay a layer of them in the bottom of the pot, and then lay a piece of the cock, and upon that some more of the dates, and take succory, endive, and parsley roots, and so every layer one upon another, and put in fine gold and some pearl, and cover the pot as close as may bee with coarse dow, and so let it distill a good while, and so reserve it for your use till such time as you have need thereof."

I could select some exceedingly ludicrous prescriptions (for the book contains 400 pages), but the most curious unfortunately happen to be the most indelicate. Besides this, I am afraid the subject is scarcely worthy of much space in such an important and useful work as "NOTES AND QUERIES."

ALEXANDER ANDREWS.

Abridge, Essex.

Mice as a Medicine (Vol. i., p. 397.).—An old woman lately recommended an occasional roast mouse as a certain cure for a little boy who wetted his bed at night. Her own son, she said, had got over this weakness by eating three roast mice. I am told that the Faculty employ this remedy, and that it has been prescribed in the Oxford Infirmary.

J.W.H.

Omens from Birds.—It is said that for a bird to fly into a room, and out again, by an open window, surely indicates the decease of some inmate. Is this belief local?

J.W.H.

MODE OF COMPUTING INTEREST.

The mode of computing interest among the ancient Greeks appears to have been in many respects the same as that now prevailing in India, which has probably undergone no change from a very remote period. Precisely the same term, too, is used to denote the rate of interest, namely, *τοκος* in Greek and *taka* or *tuka* in the languages of Western India. *Τοκοε επιδεκατοι* in Greek, and *dus také* in Hindostanee, respectively denote *ten per cent.* At Athens, the rate of interest might be calculated either by the month or by the year—each being expressed by different terms (Böckh. *Pub. Econ. of Athens*, i. 165.). Precisely the same system prevails here. *Pono taka*, that is, three quarters of a *taka*, denotes $\frac{3}{4}$ per cent. *per month*. *Nau také*, that is, nine *také*, denotes nine per cent. *per annum*. For the Greek mode of reckoning interest by the month, see Smith's *Dictionary of Greek and Roman Antiquities*, p. 524. At Athens, the year, in calculating interest, was reckoned at 360 days (Böckh, i. 183.). Here also, in all native accounts-current, the year is reckoned at 360 days.

The word *τοκος*, as applied to interest, was understood by the Greeks themselves to be derived from *τικτω*, "to produce," *i.e.* money begetting money; the offspring or produce of money lent out. Whether its identity may not be established with the word in current use for thousands of years

in this country to express precisely the same meaning, is a question I should like to see discussed by some of your correspondents. The word *taka* signifies any thing *pressed* or *stamped*, anything on which an impression is made hence *a coin*; and is derived from the Sanscrit root टक्, *tak*, to press, to stamp, to coin: whence, टक्, *tank*, a small coin; and *tank-sala*, a mint; and (query) the English word *token*, a piece of stamped metal given to communicants. Many of your readers will remember that it used to be a common practice in England for copper coins, representing a half-penny, penny, &c., stamped with the name of the issuer, and denominated "tokens," to be issued in large quantities by shopkeepers as a subsidiary currency, and received at their shop in payment of goods, &c. May not *ticket*, defined by Johnson, "a *token* of any right or debt upon the delivery of which admission is granted, or a claim acknowledged," and *tick*, score or trust, (to go on *tick*), proceed from the same root?

J.S.

Bombay.

ON THE CULTIVATION OF GEOMETRY IN LANCASHIRE.

If our Queries on this subject be productive of no other result than that of eliciting the able and judicious analysis subsequently given by MR. WILKINSON (Vol. ii., p. 57.), they will have been of no ordinary utility. The silent early progress of any strong, moral, social, or intellectual phenomenon amongst a large mass of people, is always difficult to trace: for it is not thought worthy of record at the time, and before it becomes so distinctly marked as to attract attention, even tradition has for the most part died away. It then becomes a work of great difficulty, from the few scattered indications in print (the books themselves being often so rare^[1] that "money will not purchase them"), with perhaps here and there a stray letter, or a metamorphosed tradition, to offer even a probable account of the circumstances. It requires not only an intimate knowledge of the subject-matter which forms the groundwork of the inquiry, both in its antecedent

and cotemporary states, and likewise in its most improved state at the present time; it also requires an analytical mind of no ordinary powers, to separate the necessary from the probable; and these again from the irrelevant and merely collateral.

MR. WILKINSON has shown himself to possess so many of the qualities *essential* to the historian of mathematical science, that we trust he will continue his valuable researches in this direction still further.

It cannot be doubted that MR. WILKINSON has traced with singular acumen the manner in which the *spirit* of geometrical research was diffused amongst the operative classes, and the class immediately above them—the exciseman and the country schoolmaster. Still it is not to be inferred, that even these classes did not contain a considerable number of able geometers anterior to the period embraced in his discussion. The Mathematical Society of Spitalfields existed more than half a century before the Oldham Society was formed. The sameness of pursuit, combined with the sameness of employment, would rather lead us to infer that geometry was *transplanted* from Spitalfields to Manchester or Oldham. Simpson found his way from the country to London; and some other Simpson as great as Thomas (though less favourably looked upon by fortune in furnishing stimulus and opportunity) might have migrated from London to Oldham. Or, again, some Lancashire weaver might have adventured to London (a very common case with country artisans after the expiration of apprenticeship); and, there having acquired a taste for mathematics, as well as improvement in his mechanical skill, have returned into the country, and diffused the knowledge and the tastes he took home with him amongst his fellows. The very name betokens Jeremiah Ainsworth to have been of a Lancashire family.

But was Ainsworth really the earliest mathematician of his district? Or, was he merely the first that made any figure in print as a correspondent of the mathematical periodicals of that day? This question is worthy of MR. WILKINSON's further inquiry; and probably some light may be thrown upon it by a careful examination of the *original* Ladies' and Gentleman's Diaries of the period. In the reprints of these works, only the names, real or

assumed, of those whose contributions were actually printed, are inserted—not the list of all correspondents.

Now one would be led to suppose that the study of mathematics was peculiarly suited to the daily mode of life and occupation of these men. Their employment was monotonous; their life sedentary; and their minds were left perfectly free from any *contemplative* purpose they might choose. Algebraic investigation required writing: but the weaver's hands being engaged he could not write. A diagram, on the contrary, might lie before him, and be carefully studied, whilst his hands and feet may be performing their functions with an accuracy almost instinctive. Nay more: an exceedingly complicated diagram which has grown up gradually as the result of investigations successively made, may be carried in the memory and become the subject of successful peripatetic contemplation. On this point a decided *experimental* opinion is here expressed: but were further instances asked for, they may be found in Stewart, Monge, and Chasles, all of whom possessed this power in an eminent degree. Indeed, without it, all attempts to study the geometry of space (even the very elements of descriptive geometry, to say nothing of the more recondite investigations of the science) would be entirely unproductive. It is, moreover, a power capable of being acquired by men of average intellect without extreme difficulty; and that even to the extent of "mentally seeing" the constituent parts of figures which have never been exhibited to the eye either by drawings or models.

That such men, if once imbued with a love for geometry, and having once got over the drudgery of elementary acquisition, should be favourably situated for its cultivation, follows as a matter of course. The great difficulty lay in finding sufficient stimulus for their ambition, good models for their imitation, and adequate facilities for publishing the results at which they had arrived. The admirable history of the contents of their scanty libraries, given by MR. WILKINSON, leaves nothing more to be said on that head; except, perhaps, that he attributes rather more to the *influences* of Emerson's writings than I am able to do.^[2] As regards their facilities for publication, these were few, the periods of publication being rarely shorter than annual; and amongst so many competitors, the space which could be allotted to each (even to "the best men") was extremely limited. Yet, contracted as the

means of publication were, the spirit of emulation did something; from the belief that *insertion was an admitted test of superiority*, it was as much an object of ambition amongst these men to solve the "prize question" as it was by philosophers of higher social standing to gain the "prize" conferred by the *Académie des Sciences*, or any other continental society under the wing of Royalty, at the same period. The prize (half a dozen or a dozen copies of the work itself) was not less an object of triumph, than a Copley or a Royal medal is in our own time amongst the philosophers of the Royal Society.

These men, from similarity of employment and inevitable contiguity of position, were brought into intercourse almost of necessity, and the formation of a little society (such as the "Oldham") the natural result—the older and more experienced men taking the lead in it. At the same time, there can be little doubt that the Spitalfields Society was the pattern after which it was formed; and there can be as little doubt that one or more of its founders had resided in London, and "wrought" in the metropolitan workshops. Could the records of the "Mathematical Society of London" (now in the archives of the Royal Astronomical Society) be carefully examined, some light might be thrown upon this question. A list of members attending every weekly meeting, as well as of visitors, was always kept; and these lists (I have been informed) have been carefully preserved. No doubt any one interested in the question would, upon application to the secretary (Professor De Morgan), obtain ready access to these documents.

The preceding remarks will, in some degree, furnish the elements of an answer to the inquiry, "Why did geometrical speculation take so much deeper root amongst the Lancashire weavers, than amongst any other classes of artisans?" The subject was better adapted to the weaver's mechanical life than any other that could be named; for even the other favourite subjects, botany and entomology, required the suspension of their proper employment at the loom. The formation of the Oldham Society was calculated to keep alive the aspiration for distinction, as well as to introduce novices into the arcanium of geometry. There was generous co-operation, and there was keen competition,—the sure stimulants to eminent success. The unadulterated love of any intellectual pursuit, apart from the love of fame or the hope of emolument, is a rare quality in all stages of society. Few men, however, seem to have realised Basil Montagu's idea of being

governed by "a love of *excellence* rather than the pride of *excelling*," so closely as the Lancashire geometers of that period—uncultivated as was the age in which they lived, rude as was the society in which their lives were passed, and selfish as the brutal treatment received in those days by mechanics from their employers, was calculated to render them. They were surrounded, enveloped, by the worst social and moral influences; yet, so far as can now be gathered from isolated remarks in the periodicals of the time, they may be held up as a pattern worthy of the imitation of the philosophers of our own time in respect to the generosity and strict honour which marked their intercourse with one another.

Mathematicians seldom grow up solitarily in any locality. When *one* arises, the absence of all external and social incentives to the study can only betoken an inherent propensity and constitutional fitness for it. Such a man is too much in earnest to keep his knowledge to himself, or to wish to stand alone. He makes disciples,—he aids, encourages, guides them. His own researches are fully communicated; and this with a prodigality proportioned to his own great resources. He feels no jealousy of competition, and is always gratified by seeing others successful. Thus such bodies of men are created in wonderfully short periods by the magnanimous labours of one ardent spirit. These are the men that found societies, schools, sects; wherever one unselfish and earnest man settles down, there we invariably find a cluster of students of his subject, that often lasts for ages. Take, for instance, Leeds. There we see that John Ryley created, at a later period, the Yorkshire school of geometers; comprising amongst its members such men as Swale, Whitley, Ryley ("Sam"), Gawthorp, Settle, and John Baines. This, too, was in a district in many respects very analogous to Lancashire, but especially in the one to which the argument more immediately relates:—it was a district of weavers, only substituting wool for cotton, as cotton had in the other case been substituted for the silk of Spitalfields.

We see nothing like this in the agricultural districts; neither do we in those districts where the ordinary manufacturing operations themselves require the employment of the head as well as the hands and feet. With the exception, indeed, of the schoolmaster, and the exciseman, and the surveyor, there are comparatively few instances of persons whose employment was not strictly sedentary having devoted their intellectual

energies to mathematics, independent of early cultivation. To them the subject was more or less professional, and their devotion to it was to be expected—indeed far more than has been realised. It is professional now to a larger and more varied class of men, and of course there is a stronger body of non-academic mathematicians now than at any former period. At the same time it may be doubted whether there be even as many really able men devoted to science purely and for its own sake in this country as there were a century ago, when science wore a more humble guise.

Combining what is here said with the masterly analysis which MR. WILKINSON has given of the books which were accessible to these men, it appears that we shall be able to form a correct view on the subject of the Lancashire geometers. Of course documentary evidence would be desirable—it would certainly be interesting too.

To such of your readers as have not seen the mathematical periodicals of that period, the materials for which were furnished by these men, it may be sufficient to state that the "NOTES AND QUERIES" is conceived in the exact spirit of those works. The chief difference, besides the usual subject-matter, consists in the greater formality and "stiffness" of those than of this; arising, however, of necessity out of the specific and rigid character of mathematical research in itself, and the more limited range of subjects that were open to discussion.

The one great defect of the researches of those men was, that they were conducted in a manner so desultory, and that the subjects themselves were often so isolated, that there can seldom be made out more than a few dislocated fragments of any one subject of inquiry whatever. Special inquiries are prosecuted with great vigour and acumen; but we look in vain for system, classification, or general principles. This, however, is not to be charged to *them* as a scientific vice, peculiarly:—for, in truth, it must be confessed to be a vice, not only too common, but almost universal amongst English geometers; and even in the geometry of the Greeks themselves, the great object appears to have been "problem-solving" rather than the deduction and arrangement of scientific truths. The modern French geometers have, however, broken this spell; and it is not too much to hope that we shall not be long ere we join them in the development of the

systems they have already opened; and, moreover, add to the list some independent topics of our own. The chief dangers to which we are in this case exposed are, classification with incomplete data, and drawing inferences upon trust. It cannot be denied, at all events, that some of our French cotemporaries have fallen into both these errors; but the abuse of a principle is no argument for our not using it, though its existence (or even possible existence) should be a strong incentive to caution.

These remarks have taken a more general form than it is usual to give in your pages. As, however, it is probable that many of your readers may feel an interest in a general statement of a very curious intellectual phenomenon, I am not without a hope that, though so far removed from the usual topics discussed in the work, they will not be altogether unacceptable or useless.

PEN-AND-INK.

Footnote 1:[\(return\)](#)

Although at one period of our life we took great pains to make a collection of the *periodicals* which, during the last century, were devoted wholly or partially to mathematics, yet we could never even approximate towards completeness. It was not, certainly, from niggardly expenditure. Indeed, it is doubtful whether a complete set exists, or could even be formed now.

Footnote 2:[\(return\)](#)

See *Philosophical Magazine*, Sept. 1850.

MINOR NOTES.

Sermon's Pills.—In Guizot's *Life of Monk, Duke of Albermarle*, translated and edited by the present Lord Wharncliffe, it is stated (p. 313.) that when the Duke was suffering from the diseases which afterwards proved fatal to him,

"One of his neighbours, at New Hall, formerly an officer in his army, mentioned to him certain pills said to be sovereign against the dropsy, which were sold at Bristol by one Sermon, who had also served under his orders in Scotland as a private soldier. This advice and remedy from ancient comrades, inspired the old general with more confidence

than the skill of the physicians. He sent for Sermon's pills, and found himself so much recovered by them for a time, that he returned to London at the close of the summer."

Having "found," in the newspapers of the day, the following paragraphs illustrative of this passage in the great General's history, I think them sufficiently interesting "to make a Note of."

"London, July 13. 1669.—His Grace the Lord General, after a long and dangerous distemper, is (God be praised) perfectly recovered and restored to his former health, to the Great rejoycing of their Majesties and the whole court, by the assistance of one William Sermon, of Bristol, whose pills have had that excellent success as to restore him perfectly to his sleep and appetite, and wholly abate all the symptoms of his disease. Yesterday his Grace, as being perfectly cured, dismissed his physicians from their farther attendance."

"London, July 17. 1669.—The 13th instant, Mr. William Sermon, the practitioner in physick, who so happily performed that excellent cure upon his Grace the Duke of Albermarle, was presented to His Majesty in St. James's Park, where he had the honor to kiss His Majesty's hand, and to receive his thanks for that good service."

September 9. 1669.—"Advertisement: These are to give notice that William Sermon, Dr. of Physick, a person so eminently famous for his cure of his Grace the Duke of Albermarle, is removed from Bristol to London, and may be spoken with every day, especially in the forenoon, at his house in West Harding Street, in Goldsmith's Rents, near Three Legged Alley, between Fetter Lane and Shooe Lane."

Can any of your correspondents give an account of the subsequent career of Dr. Sermon?

Δ

An Infant Prodigy (Vol. ii., p. 101.).—There are parallel cases in the hagioloists (*Hist. de l'Eglise Gallicane*, par Longueval, tom. iii. p. 430. 1782):

"S. Amand après cette mission étant repassé dans la Gaule, eut bientôt occasion de montrer l'intrépidité de son zèle ... L'amour des femmes, écueil fatal des jeunes princes, fit en peu de temps oublier à Dagobert les leçons qu'il avoit reçues de S. Arnoux et de S. Cunibert. Il se livra à cette passion avec tant de scandale, qu'il eut jusqu'à trois femmes à la fois qui portoient le nom de reines, sans parler d'un grand nombre de concubines ...

"Amand, après un assez long exil, 'refusa d'abord l'honneur de baptiser' l'enfant de son maître: 'mais les instances que le roi lui fit faire par Ouen et Eloi firent céder sa modestie à l'obéissance. L'enfant fut aussitôt apporté le saint évêque l'ayant pris entre ses bras, lui donna sa bénédiction, et récita les prières pour le faire catéchumène. L'oraison étant finie, comme personne ne répondoit, Dieu délia la langue du jeune prince, qui n'avoit pas plus de quarante jours, et il répondit distinctement *amen*.'"

This happened in 630 at Orleans, and the holy abbot who attests the miracle was present when it occurred. Had St. Amand learnt ventriloquism during his missionary excursions?

And now permit me to tell your correspondent CH. that Abp. Bramhall's Dutch is quite correct. "Mevrouw" is still the title of empresses, queens duchesses, Countesses, noble ladies, ministers of state's and other great men's wives.

G.M.

Guernsey.

A Hint for Publishers.—Many, like myself, have no doubt experienced the inconvenience of possessing early impressions of books, of which later editions exist with numerous emendations and errata.

Would it not be practicable for publishers to issue these emendations and errata in a separate form and at a fair price, for the benefit of the purchasers of the preceding editions?

Were this plan generally adopted, the value of most books would be materially enhanced, and people would not object, as they now do, to order

new publications.

HERBERT.

"*He who runs may read.*"—There appeared in Vol. ii., p. 374., a new, and, in my opinion, an erroneous, interpretation of part of ver. 2., chap. ii. Habakkuk. It appears to me probable that a person reading the vision might be struck with awe, and so "alarmed by it" as not to be able "to fly from the impending calamity" in the way which your correspondent imagines. I prefer Archbishop Newcome's explanation:—"Let the characters be so legible that one who hastily passeth on may read them. This may have been a proverbial expression."

If you be pleased to insert this, readers may judge for themselves which is the right interpretation.

PLAIN SENSE.

The Rolliad.—The following memoranda relative to this word were given to me by one who lived during the period of its publication, and was, it is believed, himself a contributor. Wraxall, in his *Memoirs*, states that the work was nearly all written by Richardson; this is not true. The principal writers were Gen. Fitzpatrick, Lord John Townshend, Dr. Lawrence—he had the chief control. They met in a room at Becket's, the bookseller; they had a secretary and copyist.

None of the contributions went to the newspaper in the original handwriting. The *Morning Herald* was the paper it is believed, in which they first appeared, although that journal was on the eve of going over to the opposite party. The "ode" to Wraxall, was written by Tickell, author of "Anticipation."

W.A.

November, 23. 1850.

The Rolliad.—

From *The Times*, about 1784.

ROLLIAD.

Political Eclogues.

ROSE.

Line 21. ed. 1795.

"Mr. Rose, Mr. Rose,
How can you suppose
I'll be led by the nose,
In voting for those
You mean to propose,
Mr. Rose, Mr. Rose?"

The above epigram is inserted in my copy of the Rolliad.

Can any of your readers give the names of the authors of the numerous pieces in the second part of "Political Miscellanies."

F.B.R.

The Conquest.—Permit me to point out the erroneous historical idea which obtains in the use of this phrase. Acquisition out of the common course of inheritance is by our legists called *perquisitio*, by the feudists *conquisitio*, and the first purchaser (he who brought the estate into the current family) the *conquereur*. The charters and chronicles of the age thus rightly style William the Norman *conquisitor*, and his accession *conquæstus*; but now, from disuse of the foedal sense, with the notion of the forcible method of acquisition, we annex the idea of victory to conquisition,—a title to which William never pretended.

W.L.

Twickenham.

QUERIES.

BIBLIOGRAPHICAL QUERIES.

(Continued from page 421.)

(18.) What could have induced the accurate and learned Saxius (*Catal. Lib. Mediol.*, edit. p. DXC.) to give the name *Elucidarium* to the first part of the *Mariale* of Bernardinus de Bustis? This writer, who has sometimes erroneously been reputed a Dominican, and who is commemorated in the Franciscan Martyrology on the 8th of May (p. 178.), derived his denomination from his family, and not "from a place in the country of Milan," as Mr. Tyler has supposed. (*Worship of the Virgin*, p. 41. Lond. 1846.) Elsewhere Saxius had said (*Hist. Typog.-Liter. Mediol.*, col. ccclii.) that the *Mariale* was printed for the first time in 1493, and dedicated to Pope Alexander VI.; and Argelati was led by him to consider the *Elucidarium* to be a distinct performance; and he speaks of the *Mariale* as having been published in 1494. (*Biblioth. Scriptor. Med.*, tom. i. p. ii. 245.) Unquestionably the real title assigned by the author to the first part of his *Sermonarium* or *Mariale* was "PERPETUUM SILENTIUM," and it was inscribed to Alexander's predecessor, Pope Innocent VIII.; and, in conjunction with De Bustis's Office of the Immaculate Conception of the Virgin Mary (sanctioned by a Brief of Pope Sixtus IV., who in 1476 had issued the earliest pontifical decree in favour of an innovation now predominant in the Church of Rome), was primarily printed "Mli," that is, *Mediolani*, "per Ulderikum scinzenzeler, Anno dni M.cccc.lxxxxij" (1492). Wharton, Olearius, Clement, and Maittaire knew nothing of this edition; and it must take precedence of that of Strasburg named by Panzer (i. 47.).

(19.) Can any particulars be easily ascertained relative to reprints of the acts of the canonisation of the Seraphic Doctor in their original small quarto shape?

(20.) To whom should we attribute the rare tract entitled *Lauacrum conscientie omnium sacerdotum*, which consists of fifty-eight leaves, and

was printed in Gothic letter at Cologne, "Anno post Jubileum quarto?"

(21.) Where can information be met with as to the authorship of the *Dialogus super Libertate Ecclesiastica*, between Hugo, Cato, and Oliver? Fischer (*Essai sur Gutenberg*, 79.) traces back the first edition to the year 1463; but I know the treatise only in the form in which it was republished at Oppenheim in 1516.

(22.) Who was the compiler or curator of the *Viola Sanctorum*? and can the slightest attempt be made at verifying the signatures and numbers inserted in the margin, and apparently relating to the MSS. from which the work was taken? One of two copies before me was printed at Nuremberg in 1486, but the other I believe to belong to the earliest impression. It is of small folio size, in very Gothic type, perhaps of the year 1472, without date, place, or name of printer, and is destitute of cyphers, catchwords, and signatures. There are ninety-two leaves in the volume, and in each page generally thirty-three (sometimes thirty-four, rarely thirty-five) lines. (See Brunet, iii. 547.; Kloss, 280.; Panzer, i. 193.)

(23.) By what means can intelligence be procured respecting "Doctor Ulricus," the author of *Fraternitas Cleri*? A satisfactory reply to this inquiry might probably be found in the *Bibl. Spenceriana*; but I have not now an opportunity of determining this point.

(24.) A question has been raised by Dr Maitland, from whose admirable criticism nothing connected with literature is likely to escape, as to the meaning of the letters "P.V." placed over a sudarium held by St. Peter and St. Paul. (*Early printed Books in the Lambeth Library*, pp. 115. 368.) Any person who has happened to obtain the *Vitas Patrum*, decorated with the curious little woodcuts of which Dr. Maitland has carefully represented two, will cheerfully agree with him in maintaining the excellence of the acquisition. In a copy of this work bearing date 1520, eleven years later than the Lambeth volume (*List*, p. 85.), the reverse of the leaf which contains the colophon exhibits the same sudarium, in company with the words "Salve sancta Facies." This circumstance inclines me to venture to ask whether my much-valued friend will concur with me in the conjecture that *Pictura Veronicæ* may be the interpretation of "P.V.?" Though the pseudo-Archbishop of Westminster declared, in the simplicity of his heart

(*Letters to John Poynder, Esq.*, p. 6.), that he had "never met" with the sequence "quæ dicitur in Missa Votiva *de Vultu Sancto*," doubtless some of his newly-arrested subjects are well aware that it exists, and that its commencement (see Bona, iii. 144.) is,—

"Salve sancta Facies nostri Redemptoris,
In qua nitet species divini splendoris,
Impressa panniculo nivei candoris,
Dataque Veronicæ signum ob amoris."

R.G.

MINOR QUERIES.

Dr. Timothy Thruscross.—What is known of the Rev. Dr. Timothy Thruscross, Thircross, or Thurscross? I am in possession of the very little related by Wood, *Ath. Oxon. et Fasti*, Walker's *Sufferings of the Clergy, Life of Barwich*, and the interesting notices scattered in several parts of Sir H. Slingsby's *Diary*; but this only renders me anxious for more, and I should be glad to receive other references.

W. DN.

Echo Song.—Meaning of Thwaites.—Would you be kind enough to insert the inclosed poem as I am very desirous of being made acquainted with the name of the writer. I expect, from various reasons, that it was written about the year 1645:—

AN ECHO.

"What wantst thou, that thou art in this sad taking?

A King.

What made him first remove hence his residing?

Siding.

Did any here deny him satisfaction?

Faction.

Tell me wherein the strength of faction lies?

On Lies.

What didst thou when the king left his parliament?

Lament.

What terms wouldst give to gain his company?

Any.

What wouldst thou do if here thou mightst behold him?

Hold him.

But wouldst thou save him with thy best endeavour?

Ever.

But if he come not, what become of London?

Undone."

I also wish to know (if any of your readers will enlighten me I shall be obliged) what is the meaning of the name "Thwaites." It is a very common name, there being Thwaites, Thornthwaites, Hawthornthwaites, Haythornthwaites, in abundance through all part of England.

LLYD RHYS MORGAN.

Deus Justificatus.—Can any of your readers give any information respecting the authorship of the book entitled:—

"*Deus Justificatus*, or the Divine Goodness vindicated and cleared, against the Assertors of Absolute and Inconditionate Reprobation. Together with some Refections on a late Discourse of Mr. Parkers concerning the Divine Dominion and Goodness. London, 1668." 8vo. pp. xxxii. 280. iii.?

My copy (which has the autograph of Richard Claridge, the quaker) has written on the title in an old hand "By H. Hallywell." In the *Biographia Britannica* vol. iv., p. 546., 2d edit., it is said to be by Ralph Cudworth. If so, it has escaped Birch and the other editors of this celebrated writer.

JOHN J. DREDGE.

Death by Burning (Vol. ii., p. 6.).—In the Mendip mining district in Somersetshire, I am credibly informed that within seventy years a person has been burned alive for stealing ore from the pit mouth. There must be

some old inhabitant who can attest this fact, and it would be desirable to obtain its confirmation.

J.W.H.

Irish Bull.—What is the exact definition of an Irish bull? When was the term first applied to the species of blunder which goes by that name?

GRIFFIN.

Farquharson's Observations on Auroræ.—A translation of the *Course of Meteorology*, by Professor Kaenitz, of Halle, by Mr. C.V. Walker, was published at London in 1845, in one volume 12mo. The work was written in German, and afterwards translated into French, and the English work is derived from the French translation. In p. 459. the following passage occurs:

"It is chiefly to the *shepherd* Farquharson, at Alford, in Aberdeenshire, that we are indebted for a long series of observations on auroræ; and he endeavoured to prove that their height is inconsiderable."

Lower down it is said:

"At the same time, *another Protestant minister*, Mr. James Paull, at Tullynessle, four kilometres from Alford, saw that the aurora possessed an unusual clearness in the zenith, so that its height did not perhaps exceed 1300 metres."

I have neither the original German work nor the French translation at hand to refer to; but I have a strong suspicion that the word translated *shepherd* is *pasteur*, and that it is used to designate Mr. Farquharson as *minister* of Alford.

L.

Smith's Vitæ Eruditissimorum et Illustrium Virorum.—In his *Life of Sir Peter Young* he quotes *Ex Ephemeride Cl. V.D. Petri Junii*, but does not say where it was preserved. This (so-called) *Ephemeris* was written by Sir Peter

in his later years, partly perhaps from memory, partly from notes, and, as might be expected, is not free from errors of date which admit of correction from other sources. Smith, following Camden, places Easter Seatown, Young's chief residence, in Lothian, whereas it is in Forfarshire, about a mile from Arbroath, and was part of the property of the great Abbey to which that town belonged. Is it known whether this *Ephemeris* is extant? and, if so, where?

SCOTUS.

Defender of the Faith.—In Banks' *Dormant and Extinct Baronage*, pp. 408-9., vol. iv., I find the following:—

"He (Henry VIII.) was the first English monarch who obtained the title of Defender of the Faith, which was conferred upon him by Pope Leo X., for a book written by him against Martin Luther."

To which the following note is subjoined:—

"But in a letter from Christopher Wren, Esq., to Francis Peek, M.A. (author of the *Desiderata Curiosa*), it is thus stated, viz., 'that King Henry VII. had the title of Defender of the Faith, appears by the Register of the Order of the Garter in the black book, (sic dictum a tegmine), now in my hands, by office, which having been shown to King Charles I., he received with much joy; nothing more pleasing him than that the right of that title was fixed in the crown long before the Pope's pretended donation, to all which I make protestation to all posterity.' Αυτογραφω, hoc meo. Ità testor. Chr. Wren, à memoria, et secretis Honoratissimi Ordinis. Wrexham, 4 March, 1736-7."

In support of this note, I find in Chamberlayne's *Present State of England*, 1669, p. 88., this statement:

"Defender of the Faith was anciently used by the Kings of England, as appears by several charters granted to the University of Oxford, &c."

As the word *anciently*, I conceive, applies to a period anterior to 1521, may I express a hope that some of your learned subscribers at Oxford will favour

your readers with the dates of the charters alluded to; and, if possible, some information as to the circumstances which led to the adoption of the title "Defender of the Faith" by the kings of England previous to the reign of Henry VIII.

ROBERT ANSTRUTHER, Lieut.-Col.

Bayswater.

Calendar of Sundays in Greek and Romish Churches.—Where can I find good authority on the calendar of Sundays in the Greek Church, and in the Roman? As to the latter, the missals and directories only give the current year: as to the former, there is no work I know of which gives anything.

M.

Dandridge the Painter.—At Osterley Park (Lord Jersey's) is the only example of the pencil of Dandridge, bearing his signature and the date 1741.

Through neglect and the effect of time this able work has been dried up, so that we may say—

"The wine of life is drawn, and nothing
Left but the mere lees:"

but there's savour of merit and signs of goodly craft for the dark age of its birth. In the group of three children of life-size we have a rare work of the period when few men of genius wielded the brush or daubed canvas, even through the inspiring patronage of a wealthy banker, whose progeny they are—and this is executed too before academies and societies offered their fostering aid, and when Hogarth struggled on probably side by side with Dandridge. Some of your readers may have traces of him and of his works, and may be able to trace his memory to the grave. All that Walpole has of him is (p. 439.):

"Son of a house painter; had great business from his felicity in taking a likeness. He sometimes painted small conversations, but died in the

vigour of his age."

QUESTOR.

Athenæum, Nov. 20. 1850.

Chaucer's Portrait by Occleve.—Is the *portrait* of Chaucer which Occleve drew in his translation of *Egidius de Roma* to be found in *all* the MSS. of that work? and, if so, has it ever been engraved. I have not Urry's *Chaucer* by me, or perhaps he could save you the trouble of answering the question.

On reference to Watts, I find he does not even mention this work of Occleve, but contents himself with a piece of supercilious criticism; whereas the notices which Occleve takes of passing events (of which the character of Chaucer is one) are at least valuable (although his poetry may not be the best in the world), and his work is also valuable in giving us the phraseology of the fourteenth century.

P.

John o'Groat's House.—Does any authenticated view of the building called *John o'Groat's House* in Caithness exist, and are any traditions respecting it known beyond the certainly ridiculous account in the fifth volume of *Beauties of Scotland*, p.83.?

Can any of your readers point out an engraving of the old *Konigs* or *Kaiserstuhl*, at *Rheuse*, on the Rhine, as well as of its restoration in 1848, after being destroyed by the hordes of revolutionary France, in 1792? It is not in Merian or Zeiler. I have seen it, but cannot call to mind the author. Perhaps *Alsatia Illustrata*?

WILLIAM BELL, Phil. Dr.

Dancing the Bride to Bed—*Old Hewson the Cobler.*—I have a tune called "A round dance to dance the bride to bed." Can any of your readers favour me with notices of such a custom prevailing? The tune dates about 1630 or earlier, and resembles that of "The Hunt is up."

Another, printed about 1730, is called, "*My name is Old Hewson the Cobler.*" Is this a cavalier's song in ridicule of the Roundhead Colonel Hewson; and are the words to be found?

WM. CHAPPELL.

[We trust these Queries may be regarded as a sign that Mr. Chappell is preparing a new edition of his valuable collection of *National English Airs*.—ED.]

Duke and Earl of Albemarle.—Albemarle has given a title of duke to the celebrated General Monk, and that of earl to the family of Keppel. Will some of your correspondents tell me where there is any place called Albemarle, which gives rise to these dignities, or why this title was assumed by these families?

J.

REPLIES.

JULIN, THE DROWNED CITY.

(Vol. ii., p. 282.)

It does not at all follow, that if a city perished by the encroachment of the sea, it was a very striking event at the time: it might have happened gradually, not suddenly. Instances both ways seem to have occurred on the shores of the German Ocean (see Lyell's *Principles of Geology*, ch. 16.). A great flood happened in 1154 (Helmold, p. 216. b. ii. c. 1. s. 5.), but it is mentioned with respect to the oceanic rivers only, and not as to the Baltic, or destruction of houses or buildings.

But was Julin drowned at all? Helmold does not say that it was (his account is in Book i. c. 2. s. 5.); and he does say that it was not, but destroyed by a certain Danish king. It is most inconceivable that he should not have known who the Danish king was, if it happened in his own time. The passage savours of much later interpolation.

Koch, *Rivol.* vol. i. p. 280., states positively that Julin was Wollin, and was destroyed by Waldemar I. in 1175, for which he seems to rely upon Helmold, or at least his continuator, Arnold. Helmold himself died in 1170.

Saxo Grammaticus lived at that time, and was probably well acquainted with the events, since he was intimate with Archbishop Absolon, who took part in them in a military as well as ecclesiastical sense. In p. 333. he says:

"Waldemar the 1st, goes with a fleet through the mouth of the river Zwina, then to the river which adjoins Julin and Camin, and has its mouth divided into two. There was a long bridge joining the walls of Julin. The king having landed 'ex adverso urbis in ripa Australi, pontem disjici jussit.' The king cleared the way for his fleet; got to an island Chrisztoa; crossed the river and went to Camin. He went out to sea by that mouth."

This is given very much at length.

All this is the geography of the present day, and the names, if you read Wollin for Julin. The Oder expands into a wide lake, shut off from the sea by a bar of land, through which there are three channels. The Zwein is the middle one of the three; that which passes by Wollin and Kimmin is the eastern one.

In p. 347. he says:

"Rex ... classem ... Zuinsibus ostiis inserit, Julinique vacuas defensoribus ædes, incendio adortus, rehabilitatæ urbis novitatem, iterata penatium strage, consumpsit.... Juilinenses, cum urbis uæ recenses ruinas, ferendæ obsidioni, inhabiles cernerent, perinde ac viribus orbat, deserta patria, præsidium Caminense petiverunt, aliena amplexi mœnia, qui propria tueri diffiderent."

In p. 359. he says: The king "per Suinam invectus, Julinum oppidum, incolarum fugâ desertam, incendio tentat."

Saxo mentions Julin, p. 182-24.: "Nobilissimum illius provinciæ oppidum," under Harold Blatand, King of Denmark, who reigned in the latter half of the ninth century. He put a body of troops into it, who became dreadful pirates.

In p. 225. he says that the Danes compelled them to give up their pirates, who were punished. In p. 381., in the reign of Canute, son of Waldemar, there is an expedition against the Julinenses, the result of which is expressed "Julinensium rebus absumptis."

In p. 382., the king sets out for Julin, but seems to have attacked only Camin. Waldemar died in 1182, Canute, 1202 (Koch.)

Arnold (b. iii. c. 8. s. 4.) speaks of the Sclavi as finally subdued and made tributary, about 1185.

In the notes to Saxo (p. 197.) there is a long extract about Wollinum, from Chytræus, a writer who lived 1530-1600, taken from the information of a

learned old man whose uncle was born there. He says he went there to see, accompanied by many of the principal inhabitants, the remains of Julin, destroyed in 1170 by Waldemar. Wollin he calls "mediocris civitas." From the ruins, it had been more than a German mile round. Part of it was "ineditiore paulum colle." He speaks of four montes, which had castles. He says Wollin is "non aspernanda civitas," but not a thirtieth part of the ancient size.

C.B.

I regret that my questioner V., from Belgravia (Vol. ii., p. 379.), should have felt aggrieved that, upon his request for my story, I should have been compelled to reply, in the words of the Ancient Mariner:

"Story! bless you, sir, I have none to tell."

As he seems, however, so assured that some account of the destruction of a city of such opulence and renown as Vineta *must* exist, I shall be extremely happy to learn it from him. I can assure my friend V. that neither Kanzow nor Microëlius (who has, however, a plan of the stone pavement of its streets at the bottom of the Baltic), nor Giesebrecht, in his *Wendische Geschichten* (Berlin, 1844, 3 vols. 8 vo.), know anything beyond what I have stated. And as to a great port disappearing in the ocean, without any cotemporary notice, the instances are frequent; as remarkable a one as any occurs in our own island, and at a much later period:—Ravenspur, which was a sea-port of the greatest importance, where certainly Henry IV., and, as some say, Henry VII., landed from the opposite continent, to claim and conquer their crowns, and where the father of De la Pole, Duke of Suffolk, was a merchant, is now so totally lost from memory and the earth, that its very site is unknown, whether within the Humber, or outside the Spurn; possibly where now the reef called Stony Binks at the mouth of that æstuary is situated.

So far, however, as an actual legend is concerned with the destruction of a great emporium of commerce, I am happy I can supply your correspondent with one, possibly the more acceptable as it is of another famous city, not very remote from Vineta, and is not without relations belonging to the latter: I allude to the town of Wisby, Visbuy, Visbye, Visburgum, on the

island of Gothland, of which the following account is found in an old Latin description of Sweden:

"Insulæ unica civitas, olim potentia splendore et magnitudine celebris, tantarum rerum jactura fracta in exiguos fines se contraxit et oppiduli speciem refert, ut Jansonii Atlas docet. Arx prope portum satis valida. Emporiis illis Pomeraniæ clarissimis Wineta et Julin pessum euntibus, Visbya inter omnia Regionum oppida floruit. (Olaus Magnus, l. 10. cap. 16.) Licet urbs vetustissima Visbyensis potentissima ac opulentissima quondam fuerit *et pro minima occasione, nempe fractionis unius fenestralis vitri vix valoris obolaris, humiliata sit*, tamen leges maritimæ et decisiones omnium controversiarum singulariter longe latèque observantur. Ex destructa autem Vineta Gothlandos incolas marmor, ferrum, cuprum, stannum, argentum, et inter alia duas ænei portas grandis ponderis petiisse, et secum in Gothlandum avexisse ferunt."

I need not remind your readers that the maritime code of Wisby even now influences many of the most important decisions affecting our present mercantile shipping, it having been the model of the Laws of the Aquitanian Islands of Re and Oleron, which Richard I. ordered to be observed in England, and which are still frequently acted on. It is, however, to the notice which I have marked in Italics that I would call the attention of V.,—the destruction of the city *on account of a small pane of glass not the value of an obolus*: and as he, no doubt, has interested himself on these northern histories, request him to explain the circumstance more in detail. I myself have often determined on searching Pontanus, and other ancient Danish authorities, but hitherto neglected, and therefore know nothing about the matter.

As to the gates, which are more especially mentioned amongst the spoils of the ruined Wineta, we find them also noticed in the same work, at its account of Wineta:

"Urbem frequentabant Græci aut potius Russi multarumque aliarum nationum mercatores, quorum affluxus frequens civibus ingentes divitias et facultates conciliavit: *adeo ut portæ civitatis ex ære paratæ*,

et argentum tam vulgare ibi esset ut ad communium et vilium rerum
usum adhibetur."

To go, however, completely into the history of these gates would require a volume. It would be necessary to commence with the great veneration for gates in general throughout the north: whether the name of their great god Thor (a gateway) is cause or consequence would have to be considered, and his coincidence, in this respect, with Janus and Janua, the eldest deity of the Italians, which I have more largely discussed in an *Essay on a British Coin with the Head of Janus*, in the 21st No. of the Journal of the British Archæological Association. Next, the question would arise, whether these gates have not been migratory, like those of Somnauth, which Mahmoud took to Gazni from a similar principle of deeply-rooted ancient veneration,—relics of sanctity rather than trophies of victory, and which Lord Ellenborough was so unjustly ridiculed for endeavouring to restore. Thirdly, therefore, also whether the famous gates of the cathedral of Novogorod may not be identical with those which have successively adorned Vineta's and Wisby's portals; and whether those which are still the ornament of the west door of the cathedral of Hildesheim, (which, according to the inscription which crosses their twenty scriptural bas-reliefs, were cast by Bereward, the thirteenth bishop, in 1015), may not be an existing and beautiful example; as is the bronze column, with the bas-reliefs of passages of the New Testament winding round it, and placed in the same cathedral close. It would not be too much to surmise, that even the beautiful gate of the Florence baptistery are from the same atelier, as an old Italian author sings:

"O Germania gloriosa,
Tu vasa ex aurichalcis
Ad nos subinde mittes."

WILLIAM BELL, Phil. D.

NICHOLAS FERRAR AND THE SO-CALLED ARMINIAN NUNNERY OF LITTLE GIDDING.

(Vol. ii., pp. 119. 407.)

Hearne, the antiquary, has preserved two curious documents relating to the Little Gidding establishment in the Appendix to his Preface to *Peter Langtoff's Chronicle*, Nos. IX. and X. See also *Thomæ Caii Vindiciæ*, vol. ii. The most complete account of this remarkable man is that by Dr. Peckard, formerly Master of Magdalen College, Cambridge, entitled *Memoirs of the Life of Nicholas Ferrar*, published in 1790, which has now become extremely scarce, but has been reprinted by Dr. Wordsworth, in his *Ecclesiastical Biography*, who has given in an Appendix an account of the visit of the younger Nicholas Ferrar to London, from a MS. in the Lambeth Library. The *Life of Nicholas Ferrar*, by Dr. Turner, Bishop of Ely, came into the hands of the celebrated Dr. Dodd, who published an abridgment of it in the *Christian Magazine* of 1761. This account was again republished, with additions, in 1837, entitled *Brief Memorials of Nicholas Ferrar, Founder of a Protestant Religious Establishment at Little Gidding, in Huntingdonshire*, by the Rev. T.M. Macdonogh, Vicar of Bovington. Some further particulars of this family may be found in Barnabas Oley's preface to *Herbert's Country Parson*, and in Bishop Hacket's *Life of Archbishop Williams*. In *Baker's MSS.* (vol. xxxv. p. 389.) in the Public Library of Cambridge, is an article entitled "Large Materials for writing the Life of Mr. Nicholas Ferrar." Isaac Walton, in his *Life of George Herbert*, also notices Ferrar, and describes minutely his mode of life at Little Gidding. From an advertisement at the end of Francis Peck's *Memoirs of Cromwell*, it appears that Peck had prepared for publication a *Life of Mr. Nicholas Ferrar*, no doubt the manuscript collections noticed by MR. RIMBAULT (p. 407.):

"Little Gidding," it has been observed, "was in England what Port Royal was in France. Ardent devotion to the Redeemer characterised both. In each, peace, charity, good order, and love to the souls and bodies of men, were eminently exhibited; upon each the hand of persecution fell with unrelenting severity. Port Royal was destroyed by the Jesuits; Little Gidding by the Puritans."

J.Y.

Hoxton.

Arminian Nunnery in Huntingdonshire (Vol. ii., p. 407.).—Allow me to refer DR. RIMBAULT to Hacket's *Life of Archbishop Williams*, Part ii. p.

50.; Izaak Walton's *Life of George Herbert*; Peter Langloft's *Chronicle*, ed. Hearne, Preface, sect xi., Appendix to Preface, Nos. IX. and X.; *Caii Vindiciæ Antiquitatis Academiæ Oxoniensis*, ed. Hearne, vol. ii. p. 683. 693. 697. 702. 713.; and *Memoirs of the Life of Mr. Nicholas Ferrar*, by Peter Peckard, D.D., Cambridge, 8vo., 1790 (which is reprinted with additions from a manuscript in the archiepiscopal library at Lambeth, in Dr. Wordsworth's *Ecclesiastical Biography*). In Dr. Peckard's Preface will be found somewhat respecting "the loss (probably the unjust detention)" of Francis Peck's manuscript life of Nicholas Ferrar, apparently the same manuscript which DR. RIMBAULT states he has seen.

C.H. COOPER.

Cambridge, November 16. 1850.

In Nichol's *Litterary Anecdotes*, vol. ii. p. 519., it is stated that "a capital account of the family of Ferrar was compiled by Mr. Gough for the sixth volume of the second edition of the *Biographica Britannica*." Of the only two copies known to exist of the printed portion of this sixth volume Mr. Chalmers possessed one, and he seems to have used it in the preparation of the life of Ferrar for his *Biographical Dictionary*.

JOHN J. DREDGE.

DR. RIMBAULT will find many interesting particulars relating to the so-called "Arminian Nunnery," and the family of Ferrars, together with an account of the present state of the place, in a paper by C. Colson, B.A., Fellow of St. John's College, entitled "An Account of a Visit to Little Gidding, on the Feast of S. Andrew, 1840," published in the first part of the *Transactions of the Cambridge Camden Society*, Stevenson, Cambridge, 1841.

E.V.

Dr. Peckard appears to have had the use of some of Peck's MSS. (perhaps those referred to by DR. RIMBAULT), but he regrets the loss of a MS. which he had lent to the Rev. Mr. Jones, of Sheepshall, being, a *Life of Nicholas Ferrar*, by Peck, prepared for the press, but which, after near

twenty years' inquiry, he had been unable to recover. This suggests the Query, Has it ever yet been recovered? DR. RIMBAULT'S inquiry regarding Thomas Hearne has been answered by Dr. Dibdin (*Bibliomania*, London, 1811, p.381.) who informs Dr. Peckard, Dr. Wordsworth, and his Quarterly Reviewer (p. 93), that Hearne, in the Supplement to his *Thom. Caii Vind. Ant. Oxon.*, 1730, 8vo., vol. ii., "had previously published a copious and curious account of the monastery at Little Gidding," which he says "does not appear to have been known to this latter editor," meaning Dr. Wordsworth. I have not Hearne's work to refer to; but Dr. Dibdin *versus* Dr. Wordsworth and his Reviewer, as to ignorance of what so well-known an author as Tom Hearne has written, is a little curious. The word "Arminian," in DR. RIMBAULT'S Query, requires a remark. On reading the *Memoir* which Dr. Wordsworth has edited, he will find (Appendix, p. 247.) that the Ferrars complained of "a libellous pamphlet, entitled the *Arminian Nunnery at Little Gidding in Huntingdonshire*," and that they repudiated "Arminianism and other fopperies." This suggests a further Query: Is DR. RIMBAULT possessed of that pamphlet? The attachment to books manifested by the Ferrars family entitles them, I humbly think, to as much space as your "NOTES AND QUERIES" can afford them.

J.D.N.N.

Renfrewshire.

If DR. RIMBAULT or any of your correspondents could furnish a reply to any of the Queries inserted by you in Vol. ii., p. 119., relative to the memoir published by Peckard, and other matters connected therewith, I should feel obliged.

MATERRE.

Mr. Henning of Hillingden, a descendant of the Ferrar family, through his great-uncle, Dr. John Mapletoft, (see Ward's *Lives of the Gresham Professors*), who was the great-nephew of Nicholas Ferrar, possessed one of the three curious volumes arranged by members of the family, viz.—A *Digest of the History of our Saviour's Life*, with numerous plates. One of these copies was presented to Charles I. on his going into the North; another to Charles II. at the Restoration; the third remained in the family. Can any

of your readers tell us whether the copies given to the two kings exist, and if so, who are the present possessors of them?

J.H.M.

Bath

VINEYARDS.

(Vol. ii., p. 393. 414.).

CLERICUS will find some information in the *Gentleman's Magazine* for the year 1775 (vol. xlv. pp. 513. 632.) which will direct him to a still fuller discussion of the subject in the third volume of the *Archæologia*.

N.B.

At *Rochester* there is a field so called; it is a very favourite *walk*. In the neighbourhood of the *Cathedral at Bath*, there is one side of a street so called.

S.S.

A part of the town of Richmond (Surrey) is called "the Vineyard." The name, of the origin of which I am ignorant, is applied to a collection of small houses between the Roman Catholic Chapel and the Rose Cottage Hotel.

W.A.G.

In the fields between Buckden and Diddington, in the county of Huntingdon, there is what is called "the Vineyard" at the present day; and connected therewith is what is called, and evidently from the shape has been, a "fish pond." In Buckden is the abbot's house, with the original door; and there is no doubt but what the above was, in olden times, belonging to a religious house in that part.

M.C.R.

A small close of land adjoining the churchyard at Oiston, Nottinghamshire (due west of the church), goes by the name of "the Vineyard."

P.P.

There is also a street at Abingdon called "the Vineyard," from the land having been formerly used for that purpose by the Benedictines of Abingdon Abbey. If my memory do not betray me, there is some interesting information on the early cultivation of the vine in England, in an article by Mr. T. Hudson Turner, in the *Archæological Journal*, which I have not now at hand.

H.G.T.

There was a vineyard belonging to Ely Place, Holborn: and another probably in the Abbey grounds at Westminster. A portion of the estate of the late Chas. Powell, Esq., of Hinton Court, near Hereford, was called the "Vineyard" and the Vineyard of the Monks of St. Mary's is yet pointed out by the good folks of Beaulieu in Hampshire. The vineyards of Bath are in the heart, not the suburbs of the present town.

MACKENZIE WALCOTT, M.A.

TREATISE OF EQUIVOCATION.

(Vol. ii., p. 168.).

As supplementary to J.B.'s valuable paper on the *Treatise of Equivocation*, I transcribe the following from the *Smith Manuscripts* (num. lxi. 5. p. 35.), thinking it may leave an interest for some of your readers:—

"*Apud*, D.P. 13th of May, 1597.

Gerard the Jesuite, his Defence of Æquivocation.

John Gerard, the Jesuite, being told that, upon the arraignment of Sowthwell the priest of high treason, one of the witnesses being asked upon her oath by one of the judges, in open court, whether Sowthwell were ever in Bellamie's house, said that she had been perswaded by Sowthwell to affirme upon her oath, that she did not see Sowthwell in Bellamie's house and to keep this secret in her mind, of INTENT TO TELL YOU, whereas in truth she had seen him diverse times in Bellamie's house; and Sowthwell being charged therewith, openly confessed the same, and sought to justifie the same by the place out of Jeremie, that a man ought to swear *in judicio, justitiá, et veritate*. Now, this John Gerrard, being asked what his opinion and judgment was concerning Southwell's opinion above said, said that he was of the same opinion, and seemed to justifie the same by the example of our Saviour Christ, who said to His disciples, that *you shall go to Jerusalem, Ego autem non ascendam*, keeping this secret to himself, of INTENT TO TELL YOU. And also sayeth that our Saviour Christ said, that the Son of Man did not know of the day of judgment, keeping this secret to himself, OF INTENT TO TELL YOU; for he sayeth, that as he was Son of Man he knew it, and could not be ignorant of any thing: and further sayeth, that a witness being examined, *juridicè* and of temporal things, not concerning religion or Catholics, cannot answer with such æquivocation as is above said. And, forasmuch as this opinion and the defence thereof seemed to be damnable and blasphemous, he was required to sett down his own opinion therein, least he should be mistaken; but he denied the same, not because it is untrue, but because he would not publish it. Then being required to subscribe the same, denied the same also.

RICHARD BARKLEY.

WILLIAM WAAD.

EDWARD COOK.

THOMAS FLEMING."

The reference "*Apud. D.P.*," which stands as I have placed it above, may perhaps enable some of your contributors to point out the source from which this account is derived. The date at the top appears to have been added by a later hand.

Oxford, Nov. 1850.

RIOTS IN LONDON.

(Vol. ii., pp. 273. 332.)

Will you do me the favour to insert the following attempt to set right and disentangle the thread of my narrative respecting the death of young Allen. Certain it is that I was not "an actor nor spectator," in the riots of 1768, for they occurred some little time before I was born! It is equally certain that a man well remembered by me as our servant, whose name was "Mac," was a soldier concerned in the affair of Allen's death. As all the three soldiers had the prefix of "Mac" to their names, I cannot tell which of them it was, but it was *not* the man who really shot Allen, and *was never again heard of*; for "Mac," whom I so well remember, must have lived with my father *after* the affair of 1768, or *I* could not have known him. In my youthful remembrance, I have blended the story about him with the riots which I had witnessed in 1780: this is the best and only explanation I can give. Sure I am, that all my father related to me of that man was true. I presume the "Mac" I knew must have been Maclane, as your correspondent E.B. PRICE thinks probable, because of his trial and acquittal, which agrees with my father's statement; and especially as he was singled out and erroneously accused of the crime—as the quotation above referred to states. All I can say is, I can relate no more; I have told the story *as I remember it*, and for myself can only apologise that (though not so old as to witness the riots of 1768) I am old enough to experience that Time has laid his hand not only on my head to whiten my locks, but in this instance compels me to acknowledge that even the memories of my early days are, like the present, imperfect. The failure is with me, not with my father.

This vindication of my honourable parent's undoubted veracity reminds me of a circumstance that I have read or heard in a trial with regard to a right of way across an inclosure. Several aged men had given their evidence, when one said, "I remember that a public footpath for more than 100 years."

"How old are you?" said the counsel. "Somewhere about eighty," was as the reply. "How then do you remember the path for 100 years?" "I remember (said the old man firmly), when a boy, sitting on my father's knee, and he told me of a robbery that took place on that footpath; and so I know it existed *then*, for *my father never told a lie*." The point was carried, and the footpath remains open to this day, to tell to all generations *the beauty of truth*.

SENEX.

In Malcolm's *Anecdotes of the Manners and Customs of London during the eighteenth Century*, 4to. 1808, there is a

"Summary of the Trial of Donald Maclane, on Tuesday last, at Guildford Assizes, for the murder of William Allen Jun. on the 10th of May last in St. George's Fields."

Upon the trial mention was made of the paper stuck up against the walls of the King's Bench Prison, from which it appears that it contained the following:

"Let * * * Judges, Ministers combine,
And here great Wilkes and Liberty confine.
Yet in each English heart secure their fame is
In spite of crowded levies at St. J——'s.
Then while in prison Envy dooms their stay,
Here grateful Britons daily homage pay."

The inscription upon the tomb of William Allen was visible in 1817, and in addition to the inscription on the north side, which has already been printed in "NOTES AND QUERIES" (Vol. ii., p. 333), was as follows:—

South Side.

"O disembodied soul! most rudely driven
From this low orb (our sinful seat) to Heaven,
While filial piety can please the ear,
Thy name will still occur for ever dear:

This very spot now humaniz'd shall crave
From all a tear of pity on thy grave.
O flow'r of flow'rs! which we shall see no more,
No kind returning Spring can thee restore,
Thy loss thy hapless countrymen deplore.

East Side.

"O earth! cover not thou my blood."—*Job*. xvi. 18.

West Side.

"Take away the wicked from before the King, and His throne shall be established in righteousness."—*Prov*. xxiii. 5.

Fifteen months afterwards the father of William Allen presented a petition to his majesty for vengeance on the murderers of his son.

O. SMITH.

Replies to Minor Queries

Osnaburg Bishopric (Vol. ii. p. 358.).—By the treaty of Osnaburg, in 1624, it was stipulated "that the alternate nomination to the Bishopric of Osnaburg should be in the catholic bishops, and in the protestant branches of the house of Luneburg." Thus, the Princes Ernest Augustus, the father of George I., Ernest Augustus, brother of the same monarch, and the late Duke of York, became sovereign-bishops of Osnaburg. But by the treaty of Vienna, in 1815, the bishopric became an integral part of the kingdom of Hanover. (Vide *Halliday's House of Guelph*, 4to. 1820, pp. 134, 135, 335.)

F.E.

Death of Richard II. (Vol. ii., p. 391.).—Otterburn tells us (pp. 228, 229.) that Richard II.'s death took place at *Pontefract Castle*, on St. Valentine's day, and adds, that the body was exposed to public view in all the principal

towns through which it passed on the road to London. See also Walsingham (p. 363.):

"Clausitque diem extremum *apud castrum de Pontefracto*, die Sancti Valentini."

The Keeper of the Wardrobe, moreover, received 100 marks for the conveyance of the king's body from Pontefract to London. (*Issue Rolls*, 1 Henry IV.)

It was the belief of many contemporaries—and arguments have been adduced by modern writers in support of the supposition—(see a very interesting treatise on the subject in the second volume of Tytler's *History of Scotland*), that Richard II. escaped from his prison, and lived for several years in Stirling Castle. But be that as it may, Froissart, I think, is clearly wrong in stating that he died in the Tower of London.

O.P.Q.

In answer to your Query relative to the death of Richard II., and his dying at Pontefract, I beg to refer you to Devon's printed *Pell Records*, Hen. III. to Hen. VI., p. 275, for the following entry:

"17 February. To Thos. Tuttabury, clerk, keeper of the king's wardrobe, In money paid to him by the hands of Wm. Pampleon, Esq., for expenses incurred for the carriage of the body of Richard, late king of England, *from the town of Pomfrait to London*, by Writ, &c., 66*l.* 13*s.* 4*d.*"

Again, at page 276.:

"To a certain other valet, sent from London, by direction of the king's council, to Pontfreyt Castle for the protection and safe custody of the body of Richard II., late king of England, In money paid to his own hands for his wages and expenses, 6*s.* 8*d.*"

This seems to be decisive of the question; but there are several other interesting entries bearing on the same point.

D.P.R.

Scottish Prisoners sold to Plantations (Vol. ii., pp. 297. 350. 379.).—

"The judgements of heaven were never so visible upon any people as those which have fallen upon the Scots since [the sale of Charles I.]; for, besides the sweeping furious plague that reigned in Edinburgh, and the incredible number of witches which have increased, and have been executed there since; besides the sundry shameful defeats they have received by the English, who carried away more of them prisoners than they were themselves in number; *besides that many of them died of mere hunger; besides that they were sold away slaves, at half a crown a dozen, for foreign plantations among savages*; I say besides all this chain of judgements, with diverse others, they have quite lost their reputation among all mankind; some jeer them, some hate them, and none pity them."—Howell's *German Dict.*, p. 65., 1653.

Echard, in *Hist. Eng.*, vol. ii. p. 727., speaking of the prisoners taken at Worcester, says that Cromwell

"marched up triumphantly to London, driving four or five thousand prisoners like sheep before him; making presents of them, as occasion offered, as of so many slaves, and selling the rest for that purpose into the English plantations abroad."

W. DN.

Lachrymatories.—There is absolutely *no* authority in any ancient author for this name, and the best scholars speak of these vessels as *the bottles usually called lachrymatories*, &c. It would be curious to discover when the name was first used, and by whom first this absurd use was imagined. It [*illegible*] that their *proper* use was to contain perfumes, scents, and unguents, as sweet odours to rest with the departed. Becker says:

"Bottles, filled with perfumes, were placed inside the tomb, which was besprinkled *odoribus*. These are the tear-flasks, or *lachrymatories*, so often mentioned formerly."—*Gallus*, p. 413. Eng. Tr.

A wasteful use of perfumes at funerals (*sumptuosa respersio*, Cicero de Legibus, ii. 23.) was forbidden by the Twelve Tables. The eighth verse of the fifty-sixth Psalm,

"My flight thou numberest: put my tears in thy bottle: stand they not in thy book?"—*Hengstenberg*, Clarke's Tr. Edinb.

is, I believe, the only evidence that can be brought in favour of the old opinion; but we surely cannot take the highly figurative language of Eastern poetry to establish a Roman custom of which we have no hint elsewhere. This verse admits of a much simpler interpretation; see Arndt, quoted by Hengstenberg *ad locum*. From a review of *Museum Disneianum*, which appeared in No. XXIII. of the *Classical Museum*, it seems that Mr. Disney has devoted to this subject some pages of the introduction to Part II. of the above work, of which a summary is given by the reviewer.

ED. S. JACKSON.

Torreridge, Herts, Oct. 23.

Querela Cantabrigiensis (Vol. ii., pp. 168. 205.).—MR. SANSOM is sustained by Anthony Wood in assigning the *Querela* to Dean Ryves; but it may be doubted whether he were anything but the editor, publishing it as an Appendix to the *Mercurius Rusticus*. The title of the work is *Querela Cantabrigiensis: or A Remonstrance by way of Apologie for the banished Members of the late flourishing University of Cambridge, by some of the said Sufferers*. Now Dean Ryves was a member of the University of Oxford. In Wood's *Fasti*, it is stated that he took the degree of B.A., Oct. 26, 1616, being then of New College. On June 9, 1619, he was admitted of Magdalen College, as a member of which he took his B.D. in 1632, and proceeded to D.D. in 1639. He had nothing therefore to do with the sufferings of the members of the University of Cambridge. In the *Life of Dr. Barwick*, the account given of the *Querela Cantabrigiensis* is:—

"But Mr. Barwick's no inconsiderable part of this tragedy, together with others of the university, groaning under the same yoke of tyranny, and each taking a particular account of the sufferings of his own college, gave a distinct narrative of all these barbarities, and under the

title of *Querela Cantabrigiensis*, or the *University of Cambridge's Complaint*, got it printed by the care of *Mr. Richard Royston*, a bookseller of *London*, who did great service to his king and country, by printing and disposing, in the most difficult times, books written in defence of the royal cause." pp. 32-33.

In the Appendix (p.495. note), Dr. Bruno Ryves is mentioned, and spoken of as the author of *Mercurius Rusticus*; but no notice is taken of his being one of the authors of the *Querela*. Of Dr. Ryves, who assisted in the Polyglot, a good account is given in Todd's *Life of Bishop Walton*, vol. i. pp. 306-309.

Barwick was upon another occasion assisted in a work against the League and Covenant, published in 1644, by William Lacy of St. John's, Isaac Barrow of Peter-House, Sethward of Sidney College, Edmund Baldero, and William Quarles of Pembroke Hall, and Peter Gunning of Clare Hall. It is not an improbable conjecture that some of these distinguished men assisted in the composition of the *Querela*.

A.B.R.

Easton.

"*Then*" for "*than*."—At the end of Selden's *Titles of Honour* (edit. 1631), after the list of "Faults escaped in print," occur the words, "may with no less difficulty be amended *then* observed?" Was the word *then* commonly used in the sense of *than*; or is it a misprint?

P.H.F.

[Dr Latham, in *English Language*, p. 377. (3d ed.), observes. "As to the word *than*, the conjunction of comparison, it is a variety of *then*; the notions of *order*, *sequence*, and *comparison*, being allied. *This is good; then* (or *next in order*) *that is good*, is an expression sufficiently similar to *this is better than that* to have given rise to it."]

Doctrine of the Immaculate Conception (Vol. ii., p. 407.).—"The Papal decision" referred to may probably be found in the Popes Letters of 2nd

Feb. 1849, and of 20th May, 1850. The former professes to seek for information on this question from the priests and bishops of the whole Catholic world, but at the same time it enunciates clearly the Pope's opinion in favour of the doctrine.

J.H.M.

Bath.

In the *Catholic Annual Register for the Year ended 30th June, 1850*, published by Dolman, will be found the recent Allocution of his Holiness Pius IX., a Pastoral of the Cardinal Wiseman, and one from the bishops of America on this subject; from which your correspondent L. will be fully able to discover the present state of the doctrine of the Catholic Church on this mystery.

FESTE.

Letters of Horning (Vol. ii., p. 393.).—Letters of Horning, in the law of Scotland, are writs issuing under the signet of the sovereign (used in the Supreme Court, or Court of Session, for signifying the sovereign's assent to writs issuing from that court) obtained by creditors, commanding messengers at arms

"To charge the debtor to pay or perform his obligation within a day certain." ... "If payment be not made within the days mentioned in the horning, the messsenger, after proclaiming three oyesses at the marketcross of the head borough of the debtor's domicil, and reading the letters there, blows three blasts with a horn, by which the debtor is understood to be proclaimed rebel to the king for contempt of his authority."

§ 26. "Denunciation, if registered within fifteen days, either in the sheriff's books or in the general register, drew after it the rebel's single cheat, i.e. forfeiture of his moveables to the crown. So severe a penalty, with the character of rebel affixed to denunciation on civil debts, was probably owing to this; that anciently letters of horning were not granted but to enforce the performance of facts within one's

own power, and when afterwards [in 1584] they came to be issued on liquid debts, the legislature neglected to soften the penalty. Insomuch that those who were denounced rebels, even for a civil cause, might be put to death with impunity till 1612. Persons denounced rebels have not a *persona standi ne judicio*. They can neither sue nor defend in any action."

I have preferred, to any explanation of my own, to make the preceding extracts from Erskine's *Principles of the law of Scotland*, Book ii., Title 5., Sections 24, 25, 26.,—a standard institutional work of the highest authority.

For those who are disinclined to examine the subject too gravely, I must refer to another authority equally worthy of credit, viz. Sir Walter Scott's *Antiquary*, where, in Chapter xviii.,

"Full of wise saws and modern instances."

the subject of imprisonment for debt in Scotland is discussed most ably by Jonathan Oldbuck, Esq., of Monkbarns, who proves to his nephew, Captain McIntyre, that in that happy country no man can be legally imprisoned *for debt*. He says,—

"You suppose now a man's committed to prison because he cannot pay his debts? Quite otherwise; the truth is, the king is so good as to interfere at the request of the creditor, and to send the debtor his royal command to do him justice within a certain time; fifteen days, or six, as the case may be. Well, the man resists, and disobeys; what follows? Why, that he be lawfully and rightfully declared a rebel to our gracious sovereign, whose command he has disobeyed, and that by three blasts of a horn, at the market-place of Edinburgh, the metropolis of Scotland. And he is then legally imprisoned, not on account of any civil debt, but because of his ungrateful contempt of the royal mandate."

I have only quoted what was absolutely necessary to answer the Query; but there is much more to be found on the subject in the same place.

I cannot suppose that there is any one of your readers so illiterate as not to have read the *Antiquary*, there are few memories which are not the better for being from time to time refreshed. My own is not of the best, which is sometimes disadvantageous to me, but not in a case like this. I have frequently read over the *Antiquary*, again and again, and have always derived much pleasure and amusement from so doing, and that pleasure I hope still again to enjoy.

J. S——s.

Dr. Euseby Cleaver (Vol. ii., p. 297.).—Your correspondent H. COTTON, Thurles, Ireland, is mistaken with reward to Dr. Euseby Cleaver. He was never Bishop of Cork and Ross. He was Bishop of Ferns and Leighlin, and translated thence to the archbishopric of Dublin *about* the year 1805. No doubt the transaction will be found in the Registry of Ferns, but I do not know the date of his consecration.

I was acquainted with that good man, and my mother was his first cousin.

R.S.

Belgave, Nov. 15. 1850.

Mrs. Partington (Vol. ii., pp. 377. 411.).—In the Rev. Sydney Smith's speech at Taunton, on the Lords' rejection of the Reform Bill, October, 1831, is this passage:

"The attempt of the Lords to stop the progress of reform, reminds me very forcibly of the great storm of Sidmouth, and of the conduct of the excellent Mrs. Partington on that occasion. In the winter of 1824, there set in a great flood upon that town—the tide rose to an incredible height—the waves rushed in upon the houses, and everything was threatened with destruction. In the midst of this sublime and terrible storm, Dame Partington, who lived upon the beach, was seen at the door of her house with mop and pattens, trundling her mop, squeezing out the sea-water, and vigorously pushing away the Atlantic Ocean. The Atlantic was roused. Mrs. Partington's spirit was up; but I need not tell you that the contest was unequal. The Atlantic Ocean beat Mrs

Partington. She was excellent at a slop or a puddle, but she should not have meddled with a tempest."

This speech is reprinted in the collected editions of Sydney Smith's *Works*. Unless an allusion to Mrs. Partington of a prior date to October, 1831, is produced, we may fairly consider that the celebrity of that lady is owing to Sydney Smith.

I doubt if Lord Brougham ever alluded to Mrs. Partington. Certain it is he never made any speech in the House of *Commons* on the Reform Bill, as he was raised to the peerage some months before that bill was brought forward.

C.H. COOPER.

"*Never did Cardinal bring good to England*" (Vol. ii., p. 424.).—Your correspondent O.P.Q. refers to Dr. Lingard's *History of England*, in which this exclamation of the Duke of Suffolk, on the adjournment of the legatine inquiry into the validity of the marriage of Henry VIII. and Catharine of Arragon, is termed an "old saw," and remarks that he should be glad to know if this saying is to be met with elsewhere, and what gave rise to it. Before we enter upon the inquiries suggested by O.P.Q., it seems to me that we have to consider a previous question—what authority is there for terming it an "old saw." Dr. Lingard refers to "Cavendish, 434.; Herbert, 278." as his authorities for the whole paragraph. But Herbert does not contain anything of the kind and Cavendish relates the matter very differently:

"With that stepped forth the Duke of Suffolk from the king, and lay his commandment spoke these words with a stout and an hault countenance, 'It was never merry in England,' quoth he, 'whilst we had cardinals amongst us!'"—Cavendish's *Wolsey*, pp. 232, 233, Singer's edition.

Is Dr. Lingard the authority for these words being an "old saw", or has he merely omitted to give a reference to the place from whence he really derived them?

BERUCHINO.

Pandects, Florentine Edition of (Vol. ii., p. 421.).—Your correspondent R.G. will find copies of the Florentine edition of the Pandects of 1553, both in the British Museum and in the Bodleian library at Oxford. It is described in the catalogues of both under the title of *Pandecta*.

C.L.L.

Master John Shorne (Vol. ii., p. 387.).—Mr. Thoms, in his curious notes on this personage, has expressed much regret that fuller details relating to a representation of *Magister Johannes Schorn* at Cawston, Norfolk, communicated to the Archæological Institute by the Rev. James Bulwer, had not been preserved in the *Archæological Journal*. I believe that the omission was solely in deference to Mr. Bulwer's intention of giving in another publication the results of his inquiries, and those persons who may desire detailed information regarding Master John will do well to peruse Mr. Bulwer's curious memoir in the *Norfolk Archæology*, vol. ii. p. 280., published March 1849, where representations of the figure at Cawston, and of another at Gateley, Norfolk, are given. There seems to be no evidence that Sir John, although in both instances portrayed with *nimbus*, had been actually canonized and it is deserving of notice that in no ancient evidence hitherto cited is he designated as a Saint, but merely as Master, or Sir John. I am surprised that Dr. Husenbeth, who is so intimately conversant with the examples of hagiotypic symbols existing in Norfolk, should not have given him even a supplementary place in his most useful manual of the *Emblems of Saints*, recently published. (Burns, 1850, 12mo.) I have sought for Sir John in vain, in either section of that valuable work. It occurs neither under the names of saints, nor in the series of emblems.

ALBERT WAY.

"Her brow was fair" (Vol. ii p. 407.).—The author of the passage quoted by J.M.B. is Barry Cornwall. It occurs in one of the delicious little "Miscellaneous Poems" attached to the volume entitled *Dramatic Scenes*. The quotation is not quite accurate, the last two words of the first line, "and look'd," being carried into the second, and thus destroying the metre of both. The Dr. Armstrong alluded to by J.M.B. is, I suppose, a modern

celebrity of whom I must plead guilty of being ignorant. The lines could, of course, only occur in the writings of the Dr. Armstrong who wrote *The Art of Preserving Health*, and who was the friend of the poet Thomson, through the interpolation of some modern editor, within the last thirty years. Barry Cornwall's poems have never been collected, in this country at least; and as the volume which contains the one in question is to be met with only occasionally, on the book stalls, I send you the entire poem:—

THE MAGDALEN.

"And woman who had wept her loveliest dower
There hid her broken heart.

Paris. "I do remember it. Twas such a face
As Guido would have loved to dwell upon;
But oh! the touches of his pencil never
Could paint her perfect beauty. In her home
(Which once she did desert) I saw her last;
Propp'd up by pillows, swelling round her like
Soft heaps of snow, yielding, and fit to bear
Her faded figure. I observed her well:
Her brow was fair, but *very* pale, and look'd
Like stainless marble; a touch methought would soil
Its whiteness. O'er her temple one blue vein
Ran like a tendril; one through her shadowy hand
Branch'd like the fibre of a leaf—away.
Her mouth was tremulous, and her cheek wore then
A flush of beautiful vermilion,
But more like art than nature; and her eye
Spoke as became the youthful Magdalen,
Dying and broken-hearted."

G.J. DE WILDE.

Dodd's Church History (Vol. ii., p. 347).—G.R., who is good enough to speak of my edition of this work in a very flattering manner, presumes, and not unnaturally, from the lengthened period which has elapsed since the appearance of the last, or fifth volume, that its continuation "has for some reason or other been abandoned." I am glad, however, to inform him that

such is not the case. Health, and other uncontrollable circumstances, have unfortunately interfered to impede the progress of the work; but that it is not abandoned, I hope, ere long, to give to him and to the public a practical evidence.

M.A. TIERNEY.

Arundel, Nov. 1850.

Blackwall Docks (Vol. i., pp. 141. 220.).—These, in Pepys' time, probably included more than the dry docks, known as Wigram's and Green's; *e.g.*, in Sir Thomas Brame's *Letters*, dated 29th Sept. 1666, we read:

"Blackwall hath the largest wet dock in England, and belongs chiefly to the East India Company."—Sir Thos. Brame's *Letters*, edit. Wilkin, t. i. p. 135.

W. DN.

Wives of Ecclesiastics (Vol. i., p. 149.).—In Archdeacon Hale's *Curious Precedents in Criminal Causes*, p. 23., under 1490, and in the parish of S. Nicholas, Coldharbour, London, we read:

"Nicholai Colde.—Johannes Warwick quondam clericus parochie ibidem adulteravit cum Rosa Williamson et ob amorem illius mutilavit et quasi interfecit uxorem propriam."

We may remark that the delinquent is not called Dominus, but "clericus parochie."

W. DN.

Stephens' Sermons (Vol. i., p. 334.).—The sermons referred to by BALLIOLIENSIS, with a suggestion that they may be those of the Rev. W. Stephens, were preached by Rev. Samuel Johnson, vicar of Great, and rector of Little Torrington. Stephens was subsequently vicar of St. Andrew's, Plymouth, a living then in the gift of the corporation.

W. DN.

Saying of Montaigne (Vol. ii., p. 278.).—I have seen this attributed to Fenelon, and, I think, to an English divine; but have no "Note," and regret I cannot recollect the name.

ESTE.

Scala Cæli (Vol. ii., p. 285.).—They are not *in* the church of St. John Lateran, but in a separate portico-like building. They form the middle flight, up which the faithful ascend on their knees, and descend by ordinary stairs on each side. These stairs are of stone (or marble), and are covered with boards, so that only parts are visible. They are said to have formed part of Pilate's house at Jerusalem; but I believe there are other claimants for the honour. One or two brass stars, inlaid in the stone, are said to mark the spots where Christ's tears fell.

ESTE.

Birmingham, Nov. 13. 1850.

Red Hand—Holt Family—Aston Church (Vol. ii., p. 241.).—The tradition is not, I believe, of very ancient date. It is stated that one of the Holt family murdered his cook, and was afterwards compelled to adopt the red hand in his arms. It is, however, obviously only the "Ulster badge" of baronetcy. I have never heard any further particulars of the tradition.

ESTE.

Swearing by Swans (Vol. ii., p. 392.).—

"Toison d'or parut ensuite; il apportait un faisan vivant, orné d'un collier d'or; alors le duc Philippe, suivant l'ancien usage qu'avaient les seigneurs de prêter leurs serments sur quelque noble oiseau, jura qu'il irait en personne dans l'Orient combattre le chef des Sarrasins." &c., &c.—*Histoire des Ducs de Bourgogne*, par F. Valentin, troisième édition, p. 235. 8vo. Tours, 1846.

E.J.M.

Oxford.

"Tickhill, God help me!" (Vol. i., p. 247.).—Chagford, on the borders Dartmoor, in Devon, is in winter a very desolate and almost unapproachable place. If an inhabitant be asked at this season concerning his locality, he calls it, in sad tones, "Chagford, good Lord!" In summer the place is picturesque and much sought, and then the exulting designation is "Chaggiford, and what d'ye think?"

Widdicombe-in-the-Moor, in the same neighbourhood, is a most out-of-the-way place, and is commonly spoken of as "Widdicombe in the cold country, good Lord!"

J.W.H.

"Noli me tangere" (Vol. ii., p. 253.).—To the list given of the painters of this subject may be added *Frederico Baroccio*. A singularly beautiful engraving by Raphael Morghen of this picture, then in the possession of the Marquis Bonvisi of Lucca, was published at Florence, 1816.

C.I.R.

Judas Bell, Judas Candle, &c. (Vol. ii., p. 298.).—In the parish accounts of Lambeth, the two following entries occur:—

"1516. To James Calcot for payntyng of Judas, 6*d.*"

"1523. Paid for a staff for Judas crosse — 4*d.*"

I venture to add these to the instances cited by Mr. Walcott, hoping that the slightly varied form may furnish a clue by which some of your readers may be able to unravel the meaning of such allusions more satisfactorily than any yet attempted.

J.C.B.

Burial towards the West (Vol. ii., p. 408.).—Mr. Hawker has stated very confidently that

"It was the ancient usage of the Church that the martyr, the bishop, the saint, and even the priest, should occupy in their sepulture a position the reverse of the secular dead, and lie down with their feet westward and their heads to the rising sun."

It is true that a custom has existed in many places for nearly two centuries and a half to assign to the clergy a method of interment distinct from that adopted for the laity; and the observance of this usage is not limited to Romanists, for its continuance may be noted among members of the Church of Ireland also, at least in remote districts of that country. With respect to this matter, however, your correspondent has entirely misapplied the term "ancient;" for until the seventeenth century there was not any difference in the mode of sepulture prescribed for priests and laymen but, most commonly, all persons entitled to Christian burial were placed with their feet toward the east, in consequence of a tradition relative to the position of our Saviour's body in the tomb. (Haimo, *Hom. pro Die Sancto Pasch.*; J. Gregorory, *Oriens nomen Ejus*, 85., Martene, *De Antiq. Eccles. Ritibus*, tom. ii. p. 374. Venet. 1783.) It is believed that there is no earlier authority for the sacerdotal privilege in question than a rule contained in the *Rituale Romanum* sanctioned by Pope Paul V. in June, 1614; viz.:

"Corpora defunctorum in ecclesia ponenda sunt pedibus versus altare majus ... Presbyteri verò habeant caput versus altare."—Cap. *De Exsequiis*, p. 63. Antwerp, 1635.

A rubric afterwards directs (p. 168.) that the bier should be so set down in the middle of the church that in every case the injunction previously given should be complied with, even from the commencement of the funeral service; and, in fact, the manner of adhering to the established practice of exhibiting in the church to the people the bodies of the deceased clergy, clad in vestments, prior to their interment (on which occasions an altar-ward posture was naturally selected for the head, in order that the remains might be more easily seen), appears to have originated the idea of the fitness of retaining an unjustifiable priestly prerogative at the time of burial.

Mr. Hawker may peruse with much advantage the first Appendix in the second edition of *Eusebii Romani Epistola de Cultu Sanctorum ignotorum*. Mabillon has herein very usefully enlarged what he had said, "De Sepultura

Sacerdotum," in the preceding impression, of which a French translation was speedily published at Paris, 12mo in eights, 1698. The text of both editions may be found together in tome i. of the *Ouvrages posthumes de Mabillon et Ruinart*, à Paris, 1724.

R.G.

Totnes Church (Vol. ii., p. 376).—As the priory of St. Mary stood on the N.E. side of the parish church, it is not improbable that the arched passage to which your querist H.G.T. refers may have been formed between the two buildings, and found needful to allow room for the extension of the chancel on the re-erection of the church in 1432. Perhaps if H.G.T. could refer to the ancient documents brought to light by the fall of one of the pinnacles into the room over the porch in 1799, he would gain some information in connexion with his inquiry. The following note may have reference to the very "gangway" in question:

"William Ryder of Totnes, by his will dated 18th Nov. 1432 desires to be buried in the cemetery of the parish church, in itinere processionali juxta ecclesiam prioris et conventus Totton, ex opposito magni altaris ejusdem ecclesiæ."—See Dr. Oliver's *Monasticum Dioc. Exon.* p. 239.

It appears that the present churchyard is the site of the priory, but on this point the labours of the sexton would probably give some intimation.

S.S.S.

Irish Brigade (Vol. ii., p. 407.).—Your correspondent J.B. will find some interesting particulars concerning the Irish Brigade in the *Military History of the Irish Nation*, by Matthew O'Connor, extending to the peace of Utrecht in 1711. It was never finished. There is very valuable Appendix in French, written in 1749, and authenticated September 1. 1815, by the Adj.-Comm.-Col. De M. Morres (Hervé); it gives the war-orders, pay, changes in the organization, and numbers of this gallant corps.

MACKENZIE WALCOTT, M.A.

MISCELLANEOUS.

NOTES ON BOOKS, SALES, CATALOGUES, ETC.

We have received the second edition of *Chronicles of the Ancient British Church*. The author exhibits great industry and research, and brings that kindly reverential temper to his subject, which cannot fail to win for it the sympathy of his readers. The apostolic origin of British Christianity, and the early independence of the British Church, are satisfactorily maintained, the labours of St. Patrick in Ireland, St. David and his workfellows in Wales, St. Columba and St. Ninian in the North, are duly chronicled; and the slender particulars that remain to us of the ancient Church in Cornwall, are gleaned up with diligence and accuracy. The volume is put together in a readable and popular shape, but is not unworthy the attention of even our clerical friends. The author takes nothing upon trust, and while availing himself of the labours of Usher, Stillingfleet, &c., he ascends to the original authorities from which they drew, and makes us acquainted with the pages of Gildas, Nennius, and Giraldus Cambrensis.

There is a time-honoured proverb, which bids us "Laugh and grow fat." The author of a series of very witty and instructive papers written under the title of, and for the prose of showing us *How to make Home Unhealthy*,—written, too, it is obvious, on the principle of "When I say hold fast, let go, and When I say let go, hold fast,"—has improved upon the old saw, and bids us "Laugh and grow healthy." The subject is one which comes home to everybody, and we accordingly recommend everybody in search of a pleasant half-hour's reading of a happy combination of common sense and uncommon humour to apply themselves to the study of *How to make Home Unhealthy*.

We last week called attention to several Flemish works likely to interest English readers. We have since seen how desirable it is that this should be done, in the fact, that a curious Flemish Rhyming Chronicle respecting our Edward III., by Jan de Klerk, edited in 1840 by that accomplished antiquary

Willems, and of which only 100 copies were printed, has hitherto been so little known in this country, that nearly a quarter of the whole impression was left unsold in the hands of the late Mr. Rodd. At the last sale of Mr. Rodd's books they were purchased by Mr. Quaritch.

We have received the following Catalogues:—Thomas Thorpe's (13. Henrietta Street, Covent Garden) General Catalogue of the most extensive Collection of Curious Books on Sale in this or any other country, in most Languages and classes of Literature, and including many hundred Articles of the utmost rarity; William Brown's (46. High Holborn) Catalogue of Second-hand English and Foreign Books; Cole's (15. Great Turnstile, Holborn) List No. XXX. of Miscellaneous Second-hand Books; Reeves' and Turner's (98. Chancery Lane) Catalogue No. 14. of Cheap Books, many Rare and Curious; John Miller's (43. Chandos Street) Catalogue No. 14. for 1850, of Books Old and New; John Petheram's (94. High Holborn) Catalogue Part CXVIII., No. 12. for 1850, of Old and New Books.

Messrs. Sotheby and Wilkinson will sell on Wednesday next and three following days, the valuable Philological, Biblical, and Miscellaneous Library of the late Rev. Richard Garnet of the British Museum.

BOOKS AND ODD VOLUMES WANTED TO PURCHASE.

OBI. An early and abridged edition.

BURKE'S WORKS. 9 vols. 8vo. 1845.

LAWRIE'S HOMŒOPATHIC DOMESTIC MEDICINE. Last Edition.

Odd Volumes.

KNIGHT'S LONDON, Nos. 27. 53. 57. 98. 105. 146.

POPE'S WORKS. Warburton, 8vo. 1760. Vol. II.

CARTER'S ARCHITECTURE OF ENGLAND. 1793. Part I.

PARKINSON'S SERMONS on Points of Doctrine and Rules of Duty. 1832. Vol. I.

ALISON'S EUROPE. First 8vo. edition. Vol. IX.

NAPIER'S PENINSULAR WAR. Vols. II. III. V.

NICHOLSON'S ARCHITECTURAL DICTIONARY. Parts XV. to the end.

URE'S DICTIONARY of Arts and Manufactures. Part VI.

*** Letters, stating particulars and lowest price, *carriage free*, to be sent to MR. BELL, Publisher of "NOTES AND QUERIES," 186. Fleet Street.

NOTICES TO CORRESPONDENTS

.

We this week present our Subscribers with eight pages extra to meet our increasing Correspondence. But though our present Number is thus enlarged, we are compelled again to postpone many valuable communications, which are already in type.

J.D.N.N. (Renfrewshire) is thanked for his kind note. He will see by the present Number, that there is no occasion for the alternative he suggests.

TWYFORD, whose Query respecting the OGDEN FAMILY appears at page 73, is requested to say how a note may reach him.

Communications should be addressed to the Editor of NOTES AND QUERIES, care of MR. BELL, No. 186. Fleet Street.

Part XIII. for November, price 1s. 3d., is now ready for delivery.

NOTES AND QUERIES may be procured, by order, of all Booksellers and Newsvenders. It is published at noon on Friday, so that our country Subscribers ought not to experience any difficulty in procuring it regularly.

Many of the country booksellers, &c., are, probably, not yet aware of this arrangement, which will enable them to receive NOTES AND QUERIES in their Saturday parcels.

Errata.—P. 365, l. 36, for "een or den" read "er or der"; p. 405, l. 16, for "Garnelies" read "Garuelies", p. 414, l. 13, for J.V.R.W. read J.K.R.W.; p. 430, l. 9, for "441" read "414"; p. 420, l. 52, for εξελελειπτω read εξελελειπτο; p. 422, l. 5, for *Amæn. Lit. iii.* read *Amæn. Lit. ii.*—l. 42, dele; after "manifest"; and in col. 2, l. 26, for "milcinqcens et onze" read "mil cinqcens et unze."

NEW WORKS.

I.

The late LORD HOLLAND'S FOREIGN REMINISCENCES. Edited by his Son, HENRY EDWARD LORD HOLLAND. Post 8vo. 10s. 6d. [On Friday next.

II.

Mr. MACAULAY'S HISTORY of ENGLAND, from the Accession of James II. Seventh Edition. Vols. I. and II. 8vo. 32s.

III.

SOUTHEY'S LIFE and CORRESPONDENCE. Edited by his Son, the Rev. C.C. SOUTHEY, M.A.; with Portraits and Illustrations. 6 vols. post 8vo. 63s.

IV.

Mr. MACAULAY'S CRITICAL and HISTORICAL ESSAYS. New Edition, complete in One Volume; with Portrait and Vignette. Square crown 8vo. 21s. calf, 30s.

V.

ESSAYS IN ECCLESIASTICAL BIOGRAPHY. By the Right Hon. Sir JAMES STEPHEN, K.C.B. Second Edition. 2 vols. 8vo. 24s.

VI.

Mr. HENRY ROGERS'S ESSAYS selected from Contributions to the Edinburgh Review. 2 vols. 8vo, 24s.

VII.

Mr. S. LAING'S OBSERVATIONS on the SOCIAL and POLITICAL STATE of the EUROPEAN PEOPLE in 1848 and 1849. 8vo. 14s.

VIII.

Mr. W.C. TOWNSEND'S COLLECTION of MODERN STATE TRIALS. Revised, and illustrated with Essays and Notes. 2 vols. 8vo. 30s.

IX.

Sir JOHN HERSCHEL'S OUTLINES of ASTRONOMY. New Edition; with Plates and Woodcuts. 8vo. 18s.

X.

The Rev. C. MERIVALE'S HISTORY of the ROMANS under the EMPIRE. Vols. I. and II. 8vo. 28s.

XI.

LOYOLA: and JESUITISM in its RUDIMENTS. By ISAAC TAYLOR. With medallion Portrait. Post 8vo. 10s. 6d.

XII.

The GEOLOGY and FOSSILS of the TERTIARY and CRETACEOUS FORMATIONS of SUSSEX. By the late F. DIXON, Esq., F.G.S.; with Woodcuts and Forty-Four Plates. Royal 4to. 63s.; India Proofs, 5l. 5s. [Early in December.

XIII.

Mrs. JAMESON'S SACRED and LEGENDARY ART. New Edition; with 16 Etchings by the Author and many Woodcuts. Square crown 8vo. 28s.

XIV.

ALARIC A. WATTS'S POETRY and PAINTING, LYRICS of the HEART; and OTHER POEMS. With 41 Steel Plates. Square crown 8vo. 31s. 6d.; morocco, by Hayday, 45s.; Proof impressions, 63s. [On Friday next.

XV.

JAMES MONTGOMERY'S POETICAL WORKS. New Edition, complete in One Volume; with Portrait and Vignette. Square crown 8vo. 10s. 6d.; morocco, 21s.

XVI.

SIR ROGER DE COVERLEY. By "The SPECTATOR" With Notes, &c., by W.H. WILLS; and Twelve fine Woodcuts from designs by FREDERICK TAYLER. Crown 8vo. 15s.; morocco, by Hayday, 27s.

XVII.

VILLA VEROCCIO; or, the YOUTH of LEONARDO DA VINCI: a Tale. By the late DIANA LOUISA MACDONALD. Fcap. 8vo. 6s.

XVIII.

The HUNTING FIELD. By HARRY HIEOVER. With Two Plates, "The Right Sort," and "The Wrong Sort." Fcap. 8vo. 5s.

XIX.

Gleig's School Series.

FIRST BOOK OF HISTORY—ENGLAND. Complete in Two Parts. Forming the first Work Of a New School Series, edited by the Rev. G.R.

GLEIG, M.A. 18mo. in Two Parts, price 1s. each.

"These little books are not only good in themselves, but promise a whole crop of goodness in educational literature.... The present *History of England* is a sample and a very good one,—clear, comprehensive, and conveying knowledge."—*Spectator*.

*** The Prospectus may be had on application to Messrs. Longman and Co., and of all Booksellers.

London

Longman, Brown, Green, and Longmans.

Committee for the Repair of the **TOMB OF GEOFFREY CHAUCER.**

JOHN BRUCE, Esq., Treas. S.A.
J. PAYNE COLLIER, Esq., V.P.S.A.
PETER CUNNINGHAM, Esq., F.S.A.
WILLIAM RICHARD DRAKE, Esq., F.S.A.
THOMAS W. KING, Esq., F.S.A.
SIR FREDERICK MADDEN, K.II.
JOHN GOUGH NICHOLS, Esq., F.S.A.
HENRY SHAW, Esq., F.S.A.
SAMUEL SHEPHERD, Esq., F.S.A.
WILLIAM J. THOMS, Esq., F.S.A.

The Tomb of Geoffrey Chaucer in Westminster Abbey is fast mouldering into irretrievable decay. A sum of One Hundred Pounds will effect a perfect repair. The Committee have not thought it right to fix any limit to the subscription; they themselves, have opened the list with a contribution from each of them of Five Shillings; but they will be ready to receive any amount, more or less, which those who value poetry and honour Chaucer may be kind enough to remit to them.

Subscriptions have been received from the Earls of Carlisle, Ellesmere, and Shaftesbury, Viscounts Strangford and Mahon, Pres. Soc. Antiq., The Lords Braybrooke and Londesborough, and many other noblemen and gentlemen.

Subscriptions are received by all the members of the Committee, and at the Union Bank, Pall Mall East. Post-office orders may be made payable at the Charing Cross Office, to William Richard Drake, Esq., the Treasurer, 46. Parliament Street, or William J. Thoms, Esq., Hon. Sec., 25. Holy-Well Street, Millbank.

Published this day,

KNIGHT'S PICTORIAL SHAKSPERE, NATIONAL EDITION.

Published in Fortnightly Parts, price 1s. each. And Monthly Sections, price 2s. 6d. each.

Part IV., containing "King John," and Section II., containing "Love's Labour's Lost," and "King John," with a portion of the "Biography" and the "Studies."

LONDON: CHARLES KNIGHT, 90. FLEET STREET,

And sold by all Booksellers in Town and Country; on application to whom may be obtained Descriptive Catalogue of the Publications issued by CHARLES KNIGHT.

Periodicals for December.

PENNY MAPS.—Part 5. Containing Four Maps in a Wrapper. Price 4½*d.* plain, or 8½*d.* coloured.

THE DALTONS; or, THREE ROADS IN LIFE. By CHARLES LEVER. No. 8. Price 1*s.* Illustrated by PHIZ.

THE BARONIAL HALLS. No. IX. Price 2*s.* 6*d.* Re-issue in super-royal 4*to.*

THE JOURNAL of DESIGN and MANUFACTURES. No. 22. Price 1*s.* With numerous Fabric Patterns and Illustrations.

WORKS OF SIR E. BULWER LYTTON, Bart. Cheap Edition. Part 41. Price 7*d.*

BECK'S FLORIST AND GARDEN MISCELLANY. No. 24. Price 1*s.* With a coloured Illustration and Woodcuts.

NEW MONTHLY MAGAZINE. NO. 360. Price 3*s.* 6*d.* Edited by W. HARRISON AINSWORTH, Esq.

AINSWORTH'S MAGAZINE. NO. 107. Price 2*s.* 6*d.*

London: CHAPMAN AND HALL, 186. Strand.

EPISTOLÆ OBSCURORUM VIRORUM alia que Aevi XVI monimenta rarissima. Edited by E. Münch (the best edition, published at 10s. 6d.). offered at 5s., or 6s. free by post.

GRAFF'S ALTHOCHDEUTSCHER SPRACHSCHATZ, Wörterbuch der Althochdeutscher Sprache mit Index von Massmann, 7 vols, 4to. (published at 7l.) offered at 3l. 3s. carriage free.

A small number of copies of the above valuable works are offered at the above prices by WILLIAMS AND NORGATE, 14. Henrietta Street, Covent Garden.

Just completed and ready for delivery.

GOTHIC ORNAMENTS. By J.K. COLLING, Architect, in 2 vols. royal 4to., price 7l. 10s. in appropriate [*book details not legible*] Gothic Cathedrals and Churches of the Middle Ages. The work may be also had in numbers, price 3s., or in parts, together or separately. Parts 1, 2, 3, 5, 6, and 7, at 1l. 1s. each; part 4, at 10s. and part 8, at 12s.

"'The Gothic Ornaments' constitutes a gorgeous work, illustrated by gold and colour, giving correct ideas of the magnificence of the original examples of which the unilluminated works afford but a scanty conception."—*Civil Engineer and Architects' Journal*, Aug. 1849.

GEORGE BELL, 186. Fleet Street.

Just Published, price 1l. 16s. Vols. I and II. illustrated with many Engravings on Wood and Copper.

THE CHURCH OF OUR FATHERS; or, St. Osmond's Rite for the Church of Salisbury. From a Manuscript in the Library of that Cathedral. Printed for the first time, and elucidated with Dissertations on the belief and Ritual of the Church in England, before and after the coming of the Normans. By DANIEL ROCK, D.D., and Canon of the English Chapter. Vol. III. at Press.

Also, price 3s. 6*d.*, in Octavo.

DID THE EARLY CHURCH IN IRELAND ACKNOWLEDGE THE POPE'S SUPREMACY? Answered in a Letter to Lord John Manners, from DANIEL ROCK, D.D.

London: C. DOLMAN, 61. New Bond Street.

Just Published, price Half-a-Crown,

JUNIUS AND HIS WORKS COMPARED with the Character and Writings of Phillip Dormer Stanhope, Earl of Chesterfield. by WILLIAM CHAMP, Author of "The Philosophy of Language."

London: HOPE & CO., Publishers, 16. Great Marlborough Street

TO GENTLEMEN ABOUT TO PUBLISH.

HOPE AND CO., Publishers., 16. Great Marlborough Street, London, undertake the PRINTING and PUBLISHING of BOOKS and PAMPHLETS greatly under the usual charges. The works are got up in the best style, and tastefully and economically bound. Every attention is also paid to the publishing department. A specimen pamphlet of bookwork, with prices, a complete Author's Guide, sent post free for 4*d.*

Gentlemen will save nearly one half by employing Hope and Co.

JOURNAL FRANCAIS, publié á Londres.—Le COURRIER de l'EUROPE, fondé en 1840, paraissant le Samedi, donne dans chaque numéro les nouvelles de la semaine, les meilleurs articles de tous les journaux de Paris, la Semaine Dramatique par Th. Gautier on J. Janin, la Revue de Paris par Pierre Durand, et reproduit en entier les romans, nouvelles, etc., en vogue par les premiers écrivains de France. Prix 6*d.*

London: JOSEPH THOMAS, 1. Finch Lane.

Nearly ready, price, neatly bound in Cloth 3s.; With gilt edges in Roan Tuck, as Pocket-Book 5s.; with gilt edges, in Morocco Tuck, as Pocket-Book 6s. 6*d*.

WHITAKER'S CLERGYMAN'S DIARY and ECCLESIASTICAL CALENDAR, for the Year of our Lord 1851, containing an Almanack and Diary, with a variety of Information useful to the Clergy, compiled from the best Sources.

JOHN HENRY PARKER, Oxford and London.

PUBLICATIONS OF W. PICKERING, 177. PICCADILLY,

DR. RICHARDSON'S DICTIONARY of the ENGLISH LANGUAGE, combining Explanation with Etymology, and Illustrated by Quotations from the best Authorities. The Words with those of the same Family in German, Dutch, and Swedish, or in Italian, French, and Spanish, are traced to their Origin. The Explanations are deduced from the Primitive Meaning through their various usages. The Quotations are arranged Chronologically from the earliest Period to the beginning of the present Century. 2 vols. 4to., reduced to 4*l*.

Abridged in One thick volume octavo, Third Edition, reduced to 15*s*.

A NEW DICTIONARY of the ENGLISH LANGUAGE, to which is affixed a Grammatical and Etymological Examination, adapted to the Dictionary.

EARLY ENGLISH POETRY. Edited by THOMAS WRIGHT. Printed in the Black Letter. 4 vols 16mo. half-bound morocco, 1*l*.

Containing—I. The Turnament of Tottenham. The Feest, a Sequel to the same Poem.—II. The Nutbrowne Maid.—The Tale of the Basin, and that of the Frere and the Boy, two early Ballads of Magic.—IV. Songs and Carols from a MS. in the British Museum.

CHAUCER'S CANTERBURY TALES, with an Essay on his Language and Versification, an Introductory Discourse, and Glossary, by THOMAS TYRWHITT. 5 vols. crown 8vo. with a Portrait, and an Engraving of the celebrated Pilgrimage, by STOTHARD, 2l. 12s. 6d.

CHAUCER'S ROMAUNT of the ROSE, TROILUS and CRESEIDE, &c., with Life by SIR HARRIS NICOLAS, 3 vols. crown 8vo. 1l. 11s. 6d.

*** A Supplement to Tyrwhitt's Edition of Chaucer, which completes the Poetical Works.

EARLY ENGLISH DRAMATISTS, Edited by the REV. ALEXANDER DYCE, uniformly printed in crown 8vo. viz.:—

GREENE, 2 vols. 2ls. PEELE. 3 vols. 1l. 11s. 6d. KIT MARLOWE, 3 vols. 1l. 11s. 6d. The third vol. of PEELE may be had separately, price 10s. 6d.

HESPERIDES, or the Works both Humane and Divine of ROBERT HERRICK, Esq., 2 vols. fcp. 8vo. with Portrait, 12s.

PIERS PLOUGHMAN'S VISION AND CREDE, newly imprinted from a MS. in Trinity College, Cambridge, edited with Notes and a Glossary, by THOMAS WRIGHT, Esq., 2 vols. fcp. 8vo. 1l. 1s.

THE POEMS OF BEOWULF, AN ENGLISH TRANSLATION, with a copious Glossary, by JOHN M. KEMBLE, Esq. Fcp. 8vo. 15s.

BEOWULF, an Epic Poem, translated from the Anglo-Saxon into English Verse, by A. DIEDRICH WACKER-BARTH, A.B. Fcp. 8vo. 10s. 6d.

THE POETICAL ROMANCES of TRISTAN, in French, in Anglo-Norman, and in Greek. Composed in the Twelfth and Thirteenth Centuries. Edited by FRANCISQUE MICHEL. 2 vols. fcp. 8vo. 1l. 10s.

CHARLEMAGNE'S TRAVELS TO CONSTANTINOPLE and JERUSALEM: a Norman-French Poem of the Twelfth Century, now first printed from the original MS. in the British Museum. Edited by F. MICHEL. Fcp. 8vo. 10s. 6d.

CONQUEST OF IRELAND an Early Anglo-Norman Metrical History of the Conquest of Ireland, from a MS. at Lambeth. Edited by FRANCISQUE MICHEL. Fcp. 8vo. 10s. 6*d*.

MASTER WACE HIS CHRONICLE of the NORMAN CONQUEST, from the ROMAN DE ROU, by EDGAR TAYLOR, F.A.S., with wood cuts, 8vo. 1*l*. 8s. The PLATES SEPARATELY, coloured after the originals, 8vo. 1*l*. 1s.

ANCIENT FRAGMENTS of the Phœnician, Chaldean, Egyptian, and other Writers, Greek and English, with an Introductory Dissertation, by ISAAC PRESTON CORY. 8vo., Second Edition, 1*l*. 1s.

THE CORRESPONDENCE OF SIR PHILIP SIDNEY and HUBERT LANGUET, now first collected and translated from the Latin. With Notes and an introduction, by the Rev. S. A. PEARS, M.A., Fellow of C.C.C. Oxford. 8vo. 10s. 6*d*.

A MANUAL OF BRITISH HISTORIANS, comprising An Account of the Monkish Writers, Early Chroniclers, and the Collections in which they are printed, with the Period of each History, and when the Writer flourished. By WM. D. MACRAY, of the Bodleian Library, Oxford. 8vo. 9s.

CRITICK OF PURE REASON, translated from the Original of IMMANUEL KANT, with Notes and Explanation of Terms, by FRANCIS HAYWOOD. Second Edition, 8vo. 18s.

AN ANALYSIS OF KANT'S CRITICK OF PURE REASON. By the Translator of that Work. 8vo. 6s.

A GUIDE to the STUDY OF HERALDRY, by J.A. MONTAGU, Esq., of Magdalen College, Cambridge, in 4to., with numerous wood-cuts, 18s.

A DISPLAY of HERALDRY by WILLIAM NEWTON. Numerous Woodcuts, 8vo. 14s.

Printed by THOMAS CLARK SHAW, of No. 8. New Street Square, at No. 5 New Street Square, in the Parish of St Bride in the city of London; and

published by GEORGE BELL, of No. 186. Fleet Street, in the Parish of St. Dunstan in the West, in the City of London, Publisher, at No. 186. Fleet Street aforesaid.—Saturday, November 30. 1850.

*** END OF THE PROJECT GUTENBERG EBOOK NOTES AND
QUERIES, NUMBER 57, NOVEMBER 30, 1850 ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.